

IRAN*

The Islamic Republic of Iran, with a population of approximately 77 million, is a constitutional, theocratic republic in which Shia Muslim clergy, and political leaders vetted by the clergy, dominate the key power structures. Government legitimacy is based on the twin pillars of popular sovereignty--albeit restricted--and the rule of the supreme leader of the Islamic Revolution. The current supreme leader, Ayatollah Ali Khamenei, was not directly elected but chosen by a directly elected body of religious leaders, the Assembly of Experts, in 1989. Khamenei's writ dominates the legislative, executive, and judicial branches of government. He directly controls the armed forces and indirectly controls internal security forces, the judiciary, and other key institutions. The legislative branch is the popularly elected 290-seat Islamic Consultative Assembly, or Majles. The unelected 12-member Guardian Council reviews all legislation the Majles passes to ensure adherence to Islamic and constitutional principles; it also screens presidential and Majles candidates for eligibility. Mahmoud Ahmadi-Nejad, a member of the Alliance of Builders political party, was reelected president in June 2009 in a multiparty election that was generally considered neither free nor fair. There were numerous instances in which elements of the security forces acted independently of civilian control.

The government severely limited citizens' right to peacefully change their government through free and fair elections, and it continued a campaign of postelection violence and intimidation. The government committed extrajudicial killings and executed persons for criminal convictions as juveniles and through unfair trials, sometimes in group executions. Security forces under the government's control committed acts of politically motivated violence and repression, including torture, beatings, and rape. The government administered severe officially sanctioned punishments, including amputation and flogging. Vigilante groups with ties to the government, such as Basij militia, also committed acts of violence. Prison conditions remained poor. Security forces arbitrarily arrested and detained individuals, often holding them incommunicado. Authorities held political prisoners and continued to crack down on women's rights activists, ethnic minority rights activists, student activists, and religious minorities. There was little judicial independence and few fair public trials. The government severely restricted the right to privacy and civil liberties including freedoms of speech and the press, assembly, association, and movement; it placed severe restrictions on freedom of religion. Authorities denied admission to or expelled hundreds of university students and professors whose views were deemed unacceptable by the

regime. Official corruption and a lack of government transparency persisted. Violence and legal and societal discrimination against women, children, ethnic and religious minorities, and lesbian, gay, bisexual, and transgender persons were extant. Trafficking in persons and incitement to anti-Semitism remained problems. The government severely restricted workers' rights and arrested numerous union leaders. Child labor remained a serious problem.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were reports that the government and its agents committed multiple acts of arbitrary or unlawful killings, and the government made only limited attempts to investigate killings.

There were at least two extrajudicial killings during the year, and there were few updates or investigations into cases from previous years.

On February 22, Yavar Khodadoust, held at Gohardasht Prison in Karaj, reportedly died as a result of severe torture. Prison officials reportedly warned Khodadoust's family from pursuing an investigation into his death.

On April 30, according to multiple sources, unknown persons in Sari Prison reportedly tortured to death Hadi Aravand, a death row prisoner, who had been convicted of murder. Sari Prison's warden claimed that Aravand's death was the result of suicide, but the coroner ruled that Aravand died from suffocation with a plastic bag tied over his head and confirmed that Aravand's arms were tied behind his back and his legs tied together at the time of his death. Torture and bruise marks were reportedly visible on Aravand's body, including a broken arm, wounds on his back, and a small deep slit around his neck.

There were no updates in the June 2009 killings in separate incidents of Amir Mirza or Taraneh Mousavi. After Basij militia arrested Mirza and Mousavi, authorities allegedly beat and tortured them in custody, including raping Mousavi.

There was no update in the July 2009 killing of Mohammad Naderipour, chairman of the student chapter in former presidential candidate Mir Hossein Mousavi's election campaign. According to Iran Human Rights Voice (IHRV), Naderipour's

body was found inside his vehicle 48 hours after plainclothes security forces had arrested him. The coroner determined that Naderipour's death was the result of "a blow by a blunt object to the back of the head." Authorities reportedly demanded the family bury his body immediately, allegedly to avoid further investigation.

In June a military court sentenced two unnamed prison officials to death in connection with the July 2009 beating deaths of university students and protesters Amir Javadifar, Mohammed Kamrani, and Mohsen Rouhalamini at Kahrizak Prison; nine others were sentenced to prison terms and lashes. The 12th was exonerated. The names and identities of the convicted were not published. In the wake of the torture allegations and the deaths of the three individuals, the supreme leader shut down the prison and launched an investigation into the case. In August Tehran Prosecutor General Saeed Mortazavi was suspended for his role in the deaths and promoted to deputy prosecutor general for Iran.

There were no updates in the July 2009 death of former student activist Alireza Davoudi who suffered a heart attack under suspicious circumstances while in hospital care. His family said officials warned them not to publicize his funeral. Davoudi had been expelled from Isfahan University, reportedly for his political activities, when in February 2009 Ministry of Intelligence and Security (MOIS) officers allegedly arrested him in his home in Isfahan and took him into custody. Security officials reportedly burned him with cigarettes, beat him, and hung him from the ceiling. In April 2009 authorities released him on bail awaiting trial, but his family hospitalized him soon afterward due to psychological problems stemming from the alleged torture.

There were no updates in the September 2009 case of Saeedeh Pouraghahi, whom security forces arrested for chanting "Allahu Akbar" (God is the greatest), considered a call to dissent, from the rooftop of her home in Tehran. Two days later, authorities summoned Pouraghahi's mother to identify and claim her body, which reportedly had been partially burned to hide evidence of rape and torture.

There were no updates in the November 2009 death under suspicious circumstances of Ramin Pourandarjani, a physician who worked at Kahrizak Prison. Officials gave conflicting reports of the cause of Pourandarjani's death, including a heart attack and an auto accident, before Police Chief Ismail Ahmadi Moghaddam announced that Pourandarjani had committed suicide and that a suicide note explained he feared charges over his alleged failure to give detainees adequate medical treatment. Some sources accused authorities of poisoning the 26-year-old doctor to silence him. Earlier in the year, Pourandarjani testified to a

parliamentary committee that authorities told him to list meningitis as the cause of death for Mohsen Rouhalamini (see above), whom Pourandarjani claimed actually died as a result of injuries inflicted during torture.

According to multiple sources, the government executed approximately 312 persons in summary executions during the year, many after trials that were conducted in secret or did not adhere to basic principles of due process. Some human rights groups reported the number was as high as 500 but had difficulty documenting the additional cases. Authorities did not release statistics on the implementation of death sentences, the names of those executed, or the crimes for which they were found guilty. Exiles and human rights monitors alleged that many persons supposedly executed for criminal offenses such as narcotics trafficking were actually political dissidents. The law criminalizes dissent and applies the death penalty to offenses such as apostasy (conversion from Islam), "attempts against the security of the state," "outrage against high-ranking officials," "enmity towards god" (moharebeh), and "insults against the memory of Imam Khomeini and against the supreme leader of the Islamic Republic." According to Amnesty International (AI), an increasing number of people were charged with moharebeh, a vaguely defined offense that carries the death sentence. According to Philip Alston, the UN special rapporteur on extrajudicial, summary, or arbitrary executions, moharebeh is "imposed for a wide range of crimes, often fairly ill defined and generally having some sort of political nature." Iran Human Rights (IHR) reported that 38 individuals were executed for the crime of moharebeh during the year.

On January 28, the government hanged Mohammad Reza Ali Zamani and Arash Rahmanipour for allegedly belonging to a military royalist group, the Kingdom Assembly of Iran, and for plotting assassinations of government officials. Rahmanipour was 17 at the time of the crime. According to AI, authorities denied both men access to legal counsel and coerced their confessions. Zamani and Rahmanipour were arrested three months prior to the June 12 election, and they appeared in the August 2009 "show trials" (see section 1.e.) with others who had been detained during postelection protests. For this reason many commentators believed that their execution was a warning to prevent further protests.

On May 9, the government hanged Kurdish activists Farrad Karmangar, Ali Heydarian, Farhad Vakili, Shirin Alam Holi, and Mehdi Eslamian at Evin Prison. In 2008 Karmangar received a death sentence for "endangering national security" based on his alleged involvement with the Turkey-based Kurdish Workers Party. Karmangar, superintendent of high schools in Kamayaran, was affiliated with a

number of civil society organizations, including the local teachers' union, an environmental group, and the Human Rights Organization of Kurdistan. According to the International Campaign for Human Rights in Iran (ICHRI), the defendants' trials lacked due process or proper evidence, and authorities executed the individuals without prior notification to the families and lawyers.

During the year the government practiced public executions and group executions. The IHR reported that the government executed at least 19 persons in public during the year. According to the ICHRI, judicial authorities ordered the hanging of hundreds of individuals inside Vakilabad Prison during the year. According to a former prisoner of Vakilabad, most of those executed were sentenced based on drug-related charges, and the executions were conducted dozens at a time, most without the knowledge and presence of the lawyers and families of those executed.

There were two reports during the year of persons executed for crimes committed when they were minors. In addition to the execution of Arash Rahmanipour (see above), according to IHR, in July authorities executed a juvenile offender known only as Muhammed. Domestic human rights lawyers reported that at least 100 juvenile offenders were on death row at year's end, many for offenses such as homosexual conduct, apostasy, or acts incompatible with chastity.

Adultery remained punishable by death by stoning, but there were no reported executions by stoning during the year. The law provides that a victim of stoning is allowed to go free if he or she escapes. It is much more difficult for women to escape as they are buried to their necks whereas men are buried only to their waists. According to AI, 10 women and four men were at imminent risk for death by stoning at year's end (see section 1.e.).

There were no reports of the government or its agents killing demonstrators during the year; however, during the June 2009 election protests, scores of protesters and nonprotesting bystanders were killed, especially during antigovernment rallies. Government sources reported the death toll at 37, opposition groups reported approximately 70 individuals died, and human rights organizations suggested as many as 388. There were no reported arrests, charges, or investigations in conjunction with these deaths, nor were there updates in the killing cases of the following individuals: Sohran Arabi, Behzad Mohajer, Neda Agha-Soltan, Mahmud Raisi Najafi, and Ashkan Sohrabi.

b. Disappearance

There were reports of politically motivated abductions during the year. Plainclothes officers or security officials often seized journalists and activists without warning and detained them incommunicado for several days or longer before permitting them to contact family members (see section 1.d.). Families of executed prisoners did not always receive notification of their deaths.

Sometime after January 2, according to AI, authorities arrested Sourena Hashemi and Alireza Firouzi, students who had been expelled from Zanzan University for their role in exposing the sexual abuse of a female student in 2008. Their arrest was not officially acknowledged for more than six weeks. Firouzi is a member of Human Rights Activists in Iran (HRAI), many of whose members were arrested in the wave of arrests of human rights defenders in March. Evin Prison authorities released Hashemi on bail on April 4 and Firouzi on May 12.

On November 8, authorities arrested six followers of imprisoned Ayatollah Hossein Kazemeyni Boroujerdi, who called for separation of church and state, and on December 6, authorities reportedly detained Mohammad Mehman Navaz, a civil engineer and supporter of imprisoned Ayatollah Boroujerdi, in an unknown location after summoning Navaz to the special clerical court. At year's end there was no information about where the prisoners were held.

During the year Fayzolah Arabsorkhi, a member of the central body of the reformist Islamic Revolution Mujahedin Organization and former deputy minister of commerce, reappeared at Evin Prison. Sources stated he was serving a six-year term at year's end; however, there was no information about any trial having been held. In July 2009 unidentified persons arrested Arabsorkhi without presenting a warrant or identifying themselves as police. Evin Prison guards allegedly beat Arabsorkhi in custody, necessitating a visit to the hospital. On April 10, according to The Green Voice of Freedom Web site, authorities released Arabsorkhi for five days on a bail of 10 million toman (approximately one million dollars). On December 19, authorities arrested his reformist daughter Fatemeh Arabsorkhi and released her on bail at the end of the year.

The Iranian-American Jewish Federation reported that 11 Jewish men who disappeared in 1994 and 1997 remained missing. In 2007 witnesses claimed they saw some of the men in Evin Prison.

- c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution and law prohibit torture, but there were numerous credible reports that security forces and prison personnel tortured detainees and prisoners. A February 5 study by the UN special rapporteur on torture stated there were "credible" allegations that the country's security forces committed politically motivated torture following demonstrations in 2009.

Common methods of torture and abuse in prisons included prolonged solitary confinement with extreme sensory deprivation (sometimes called "white torture"), beatings, rape and sexual humiliation, long confinement in contorted positions, kicking detainees with military boots, hanging detainees by the arms and legs, threats of execution, burning with cigarettes, pulling out toenails, sleep deprivation, and severe and repeated beatings with cables or other instruments on the back and on the soles of the feet. To intensify abuse, perpetrators reportedly soaked prisoners before beating them with electric cables, and there were some reports of electric shocks to sexual organs. Prisoners also reported beatings on the ears, inducing partial or complete deafness; blows in the area around the eyes, leading to partial or complete blindness; and the use of poison to induce illness.

Some prison facilities, including Evin Prison in Tehran, were notorious for cruel and prolonged torture of political opponents of the government. Authorities also maintained unofficial secret prisons and detention centers outside the national prison system where abuse reportedly occurred. The government reportedly used white torture especially on political prisoners, often in detention centers outside the control of prison authorities, including Section 209 of Evin Prison.

There were reports of deaths attributed to torture by government security forces during the year (see section 1.a.). There were also reports of torture of political prisoners and labor leaders during the year, and in 2009 Ahvazi Arabs alleged that authorities tortured and raped community activists during the year (see section 6, Minorities).

On May 18, according to the Committee to Protect Journalists (CPJ), guards at Evin Prison severely beat *Kayhan* columnist, blogger, and documentary filmmaker Mohammad Nourizad, causing what the prison physician classified as a serious head injury that affected his eyesight. Authorities had detained Nourizad in December 2009 and sentenced him to three and one-half years in prison and 50 lashes on charge that included "propaganda against the regime" and "insulting the supreme leader, the president, and the head of the judiciary." The CPJ sent a letter on June 9 to judiciary chief Sadeq Larijani expressing concern regarding Nourizad's treatment in prison. On June 24, authorities released Nourizad on 300

million toman (\$300,000) bail; however, on August 20, after he published a critical letter addressed to the supreme leader on his blog, authorities rearrested him. Nourizad began a hunger strike on December 10 to protest the irregularities in his trial and prison conditions. On December 16, authorities arrested members of his family along with the wife of a reformist leader when the families gathered outside of Evin Prison to ask about Nourizad's health. According to the ICHRI, security officials interrogated and verbally abused them.

On August 25, the brother of Azeri activist Youssef Soleiman reported that prison authorities administered electric shocks and gave psychotropic drugs to his brother. Soleiman was arrested on June 16; no charges had been announced in his case at year's end.

During the year according to an August 3 report by the Iranian Committee of Human Rights Reporters, interrogators in the Intelligence Department's isolation cells tortured Ahmad Bab, an activist for Kurdish minority rights arrested in September 2009, and demanded that Bab admit to having connections with antigovernment groups. When Bab refused to confess, one of the interrogators pulled three of his teeth with pliers. Interrogators allegedly also beat Bab with a baton, tied his limbs to the bed and pulled them until he fainted, and verbally abused him.

During the year according to various sources, authorities at Evin Prison tortured or abused and mistreated Mohammad Davari, who served as presidential candidate Mehdi Karroubi's chief of staff and editor in chief of the Saham News Web site until his September 2009 arrest. According to Karroubi's Web site, the torture was intended to force Davari to publicly cast doubt on Karroubi's 2009 claim that postelection prisoners had been raped.

On July 22, journalist Reza Rafei-Forushan wrote a letter to judiciary head Ayatollah Sadegh Larijani describing his abuse in prison and his forced confession. Authorities arrested Rafei-Forushan in June 2009 after the elections and held him for 43 days in solitary confinement during his interrogation.

In June Supreme Leader Khamenei granted clemency to journalist and former Ministry of Intelligence official, reformist, and former presidential advisor Saeed Hajjarian, and authorities released him from Evin Prison in August. During his incommunicado detention beginning in June 2009, prison authorities reportedly interrogated Hajjarian in direct sunlight at high temperatures and then doused him with ice water, causing him to have heart palpitations. Since sustaining a spinal

cord injury in an assassination attempt in 2000, Hajjarian has used a wheelchair and required a number of medications; according to the ICHRI, authorities denied him medication and allegedly gave him psychotropic drugs to weaken his mental state. In October 2009, after Hajjarian's appearance in the "show trials" (see section 1.e.), the Revolutionary Court of Tehran sentenced him to a five-year sentence for inciting postelection unrest.

At year's end Ibrahim Sharifi remained outside the country. In June 2009 security personnel sexually assaulted Sharifi after his arrest for participating in antigovernment demonstrations. In August 2009 an unidentified man Sharifi suspected of being a government agent warned him against testifying to a parliamentary committee about his allegations of abuse. There was no evidence that the government pursued any investigation into Sharifi's abuse claim.

At year's end Maryam Sabri resided outside the country. In July 2009, according to Human Rights Watch (HRW), authorities arrested Sabri during a vigil after her photo appeared on a Web site connected to the Iran Revolutionary Guard Corps (IRGC) that posted pictures of protesters and asked viewers to identify persons in the photos for arrest. According to Sabri, prison guards raped her four times before they released her in August 2009.

At year's end Ebrahim Mehtari resided outside the country. In August 2009 security officers believed to be IRGC members abducted the computer science student and political activist from his workplace and transferred him to a location in eastern Tehran. Mehtari told HRW that his jailers beat him severely and repeatedly and sodomized him with a baton or stick during his detention. Passersby later found him on a street in Tehran semiconscious, bleeding, and with his hands and feet tied, and took him to a hospital. A physician from the medical examiner's office, which reports to the judiciary, examined Mehtari the next day, but when the medical examiner learned Mehtari had just been released from detention, officials tried to destroy the report.

There were no updates in the 2008 beating case of Peyman Fatahi.

Some judicially sanctioned corporal punishment constituted cruel and inhuman punishment, including execution by stoning (see section 1.a.), amputation for multiple-theft offenses, and lashings. According to an October 11 report published by the semiofficial Iranian Students News Agency, Mashad prosecutor Mahmoud Zoghi said that amputations, which were often carried out in the presence of other prisoners, were an increasingly common punishment. The head of the country's

delegation to the UN Human Rights Council, Mohammad Javad Larijani, told the council during the year that the government does not consider such punishments torture or cruel or inhuman punishment and that they are culturally justified.

On October 16, a judge sentenced a man convicted of robbing a confectionary shop to have one of his hands amputated. According to local press reports, authorities amputated his hand on October 24.

On October 23, according to state media, authorities in Yazd amputated the hand of an unidentified man convicted of theft. According to the ICHRI, deputy judiciary head Seyed Ebrahim Raeisi said the amputation was "based on the law and divine punishment" and "a source of pride for us."

On December 11, local press reported that the Supreme Court upheld a sentence of blinding with acid for a man who blinded his lover's husband in the same manner. At year's end there was no information as to whether this sentence was carried out.

During the year the government initiated limited investigations into reports of torture or cruel, inhuman, or degrading treatment or punishment; according to AI, these investigations focused more on covering up abuses than revealing the truth or punishing those believed responsible.

Prison and Detention Center Conditions

Prison conditions were poor. There were frequent water shortages and sanitation problems. Prisoners were frequently subjected to harassment and discrimination. Many prisoners were held in solitary confinement or were denied adequate food or medical care as a way to force confessions. Overcrowding was a significant problem, forcing many prisoners to sleep on the floor. According to a June 11 statement by the Student Committee in Defense of Political Prisoners (SCDPP), Ward 4 of Gohardasht Prison (also known as Rajai Shahr) held more than 800 prisoners, but had a capacity for 240, with no bathrooms and only eight toilets. Numerous prisoners complained that authorities intentionally exposed them to extreme cold for prolonged periods and said they lacked access to medical care in prison. AI and Reporters Without Borders (RSF) reported on July 16 that many prisoners have had heart attacks or other cardiac problems in different prisons, especially Evin and Gohardasht. RSF also noted that prison authorities refused to transfer ailing prisoners to hospitals even when the prisoners urgently needed treatment that can only be provided outside a prison and even when the prison doctors themselves recommended it.

On January 13, according to IHRV, Evin Prison authorities brutally beat Mahdi Mahmudian, a member of Mosharekat Front, who suffered from kidney disease. Mahmudian had reportedly protested the bathroom restrictions enforced on him.

On January 19, former commander of the Center for Expert Naval Training Colonel Alborz Ghasemi died after spending 20 months in confinement in an intelligence detention center and in Evin Prison. Ghasemi suffered from stomach cancer and had been tortured; he allegedly received minimal medical care in detention. He was originally accused of providing intelligence to the People's Mojahedin Organization (MEK).

As of mid-August authorities reportedly continued to refuse hospitalization requests from two imprisoned journalists with serious health conditions, Isa Saharkhiz, a reformist journalist held in Gohardasht Prison, and Hangameh Shahidi (see section 2.a.). On November 11, according to a press report, Saharkhiz fainted and authorities transferred him to a hospital to receive treatment for his heart condition; however, he returned to prison almost immediately despite a cardiologist's recommendations that he be released from prison.

On August 19, domestic human rights activists reported that authorities at Karoun Prison in Ahvaz had banned Abolfazl Abedini Nasr, a journalist and former head of a domestic human rights organization, from leaving his cell even though Abedini Nasr was medically required to visit the prison's clinic every three days to receive medical treatment (see section 2.a.).

On July 26, after authorities granted him early release, student activist Iman Sadighi (see section 1.e., Political Prisoners) reported on conditions in Mati Kola prison in Babol: "Fighting amongst prisoners...was a daily occurrence. In one incident two inmates had a fight with each other and one of them bit the other's ear off, then to prove how dangerous he was, he chewed and swallowed the ear--you felt that there was nothing of humanity left inside the prison. Our rooms were infested with cockroaches. Sometimes the cockroaches would even get in our food. At night, the cockroaches would get into our beds and we would wake up with them crawling over our faces. To add to all this, our blankets were infested with lice, and there were rats that came in the cell from time to time. There are no toilets in these solitary cells; prisoners are only ever allowed to use the toilets three times a day. Many times they can't wait for their turn and they have to do their toilet in the cell, which is why the solitary wing cells reek of excrement stench."

There were no updates, nor was there evidence of any government investigation, in the cases of two prisoners who allegedly died due to neglect: Karaj political prisoner Amir Hossein Heshmat Saran in February 2009 or Evin prisoner and blogger Omid Reza Mirsayafi in March 2009 (see section 2.a., Internet Freedom).

On January 7, the parliamentary special committee investigating reports of torture and abuse of postelection detainees in Kahrizak Detention Center in 2009 submitted its final report, which placed responsibility for the beating deaths of three detainees on then prosecutor general Saeed Mortazavi. Authorities transferred Mortazavi to head the country's task force against smuggling. On August 22, progovernment news sources reported that authorities had also suspended three top judicial officials at the Tehran prosecutor's office in connection to the case. In late July 2009 Supreme Leader Khamenei ordered Kahrizak detention center closed.

In an April 14 interview with the Iran Human Rights Documentation Center, nongovernmental organization (NGO) activist Ali Kantoori described conditions in two prisons, Evin and Ghezal Hesar, where he was detained in 2008. In addition to beatings during interrogation, solitary confinement, and harassment of family members, Kantoori said lice infestations were common, prisoners had inadequate access to clean water or medical care, and the prisons lacked heat and air conditioning and had an insufficient number of bathing facilities. Guards reportedly regularly mistreated prisoners, including forcing them to kneel during prisoner counts. Authorities released Kantoori on bail after five months, but in August 2009 the Sanandaj General Court sentenced him to 15 years' imprisonment. In mid-March Kantoori left the country, and he was living outside the country as a refugee at year's end.

In June the UK-based International Center for Prison Studies reported that more than 166,000 prisoners in the country occupied facilities constructed to hold no more than 98,000 persons (170 percent of official capacity). There were reports of juvenile offenders detained with adult offenders. Pretrial detainees occasionally were held with convicted prisoners. Political prisoners were often held in separate prisons or wards--such as Evin Prison, especially Ward 240, and Ward Eight of Gohardasht Prison, known as the IRGC ward--or in isolation for long periods of time. Human rights activists and international media also reported cases of political prisoners confined with violent felons.

The government did not permit independent monitoring of prison conditions by any outside groups, including UN groups or special rapporteurs. A parliamentary

committee investigating prison conditions paid a visit to Evin Prison in July 2009 and issued its report on January 10. According to press reports, the committee called for a complete investigation and blamed prosecutor Mortazavi for the rape and torture that took place in the prison. At the same time, the committee also blamed opposition candidates Mehdi Karroubi and Mir Houssein Mousavi for fomenting abuse; both previously expressed concern about sexual abuse in Evin Prison. The report claimed that reported sexual assaults did not occur, despite the testimony of numerous witnesses.

d. Arbitrary Arrest or Detention

Although the constitution prohibits arbitrary arrest and detention, these practices continued during the year.

Role of the Police and Security Apparatus

Several agencies share responsibility for law enforcement and maintaining order, including the MOIS, the Law Enforcement Forces under the Interior Ministry, and the IRGC. The Basij and informal groups known as the Ansar-e Hizballah (Helpers of the Party of God) were aligned with extreme conservative members of the leadership and acted as vigilantes. In October 2009 the government announced the merger of the Basij into the IRGC ground forces. While some Basij units received formal training, many units were disorganized and undisciplined. During government-led crackdowns on demonstrations, the Basij were primarily responsible for the violence against the protesters.

The security forces were not considered fully effective in combating crime. Videos posted on the Internet in October documented two stabbing murders that occurred in public spaces while police failed to intervene.

Corruption and impunity were problems. Regular and paramilitary security forces committed numerous serious human rights abuses, but there were no transparent mechanisms to investigate security force abuses and no reports of government actions to reform the abusers.

Arrest Procedures and Treatment While in Detention

The constitution and penal code require a warrant or subpoena for an arrest and state that an arrested person must be informed of charges within 24 hours. Authorities rarely followed these procedures in practice. Authorities held

detainees, at times incommunicado, often for weeks or months without charge or trial, frequently denying them prompt contact with family or timely access to legal representation. In practice there was neither a time limit for detention nor judicial means to determine the legality of the detention. According to the law, the state is obligated to provide indigent defendants with attorneys only for certain types of crimes. The courts set prohibitively high bail, even for lesser crimes, and in many cases courts did not set bail. Authorities often compelled detainees and their families to submit property deeds to post bail. Prisoners released on bail did not always know how long their property would be retained or when their trials would be held.

The intelligence arm of the IRGC reportedly conducted arrests during the year, sometimes without a warrant. Additionally, security forces executed general warrants to arrest protesters or those perceived as opponents of the government. The use of these general warrants precluded the need for individual warrants.

There were reports of arbitrary and false arrests during the year, including the arrest of dozens of students and journalists in February in anticipation of protests planned for February 11, the anniversary of the revolution.

On February 7, authorities arrested Mahsa Jazini, a women's rights activist and journalist with *Iran Newspaper*, at her home in Isfahan. According to her attorney, charges against her included "actions against national security" and "cooperation with foreign media"; however, Jazini reportedly said the officers who arrested her and confiscated her personal items described her crime as "being a feminist." On March 1, authorities released her on bail for 100 million toman (\$100,000).

On March 2, police arrested physician and blogger Hesam Firouzi on unknown charges and placed him in Ward 209 of Evin Prison. Firouzi served as physician to many political prisoners. In June judicial authorities reportedly set his bail at 100 million toman (\$100,000); it was unknown whether he was in prison at year's end. Firouzi was previously arrested in March 2009 and served six months of a 15-month prison term for acting against the country's national security, distorting public opinion, distributing lies, and giving refuge and medical treatment to political prisoners.

On November 2, authorities arrested journalist Nazanin Khosravani and charged her with acting against national security. There was no information as to the basis of the charges, and Khosravani's mother reportedly said Khosravani had not been working as a journalist for more than a year. According to media reports, Tehran

Prosecutor General Abbas Jafari Dolatabadi warned Khosravani's mother not to conduct media interviews if she wanted to help her daughter. At year's end Khosravani remained in Evin Prison and had been permitted contact with her family only once, via telephone.

There was no update in the March 2009 beating and arrest case of Yasser Torkman, a student at Amir Kabir University and member of the Islamic Students Organization in Tehran; authorities released Torkman on bail in April 2009.

At year's end former government spokesman Abdollah Ramezanzadeh was serving his six-year sentence for "acting against national security." In June 2009 police arrested and seriously beat Ramezanzadeh. He spent 116 days in solitary confinement, 74 of which were incommunicado and without charge, and then appeared at the August 2009 "show trial" (see section 1.e.) and was convicted in December 2009. Ramezanzadeh was incarcerated due to a letter that he cowrote to the head of the judiciary calling for the prosecution of IRGC officials for their role in the June 2009 election and its aftermath.

At year's end Mohammad Mostafaei, a human rights activist who represented the cases of many juveniles sentenced to death as well as that of Sakineh Mohammadi-Ashtiani, a woman sentenced to stoning for adultery, had claimed asylum in Norway. On November 11, media reported that the Islamic Revolutionary Court sentenced Mostafaei in absentia to six years in prison for acting against national security for discussing Mohammadi-Ashtiani's case with foreign-based Farsi-language media. In July and August, authorities detained Mostafaei's wife and brother- and father-in-law in an attempt to get Mostafaei to turn himself in, and the two men faced charges of concealing a suspect at year's end. Mostafaei was originally arrested by plainclothes police officers in June 2009.

On May 16, Clotilde Reiss, a French national teaching assistant formerly employed at Isfahan University, returned to France. In July 2009 authorities arrested Reiss on charges of espionage, and she was present at the August 2009 "show trials" along with French embassy employee Nazak Afshar and British embassy employee Hossein Rassam, who were also charged with espionage and plotting to overthrow the government. On October 25, an appeals court overturned Rassam's conviction and four-year prison sentence for espionage, substituting a one-year suspended sentence for spreading propaganda against the regime and maintaining a five-year ban against his employment by foreign embassies or organizations. Afshar was released in August 2009 on bail of 500 million toman (\$500,000).

At year's end, authorities released on bail of 500 million toman (\$500,000) one of the U.S. citizens arrested by border guards in July 2009 on the Iran-Iraq border and permitted her to leave the country; the other two remained in Evin Prison. Authorities held the Americans in solitary confinement for extended periods of time during the first months of their detention. Their trial for espionage and illegal entry into the country was scheduled for February 6, 2011.

In November 2009, according to the ICHRI, security forces arbitrarily arrested scores of students throughout the country in an attempt to stifle protests expected on Students' Day, December 7. For instance, on November 3, media reported that authorities had arrested civil activists and student leaders Hasan Asadi Zaidabadi and Mohammad Sadeghi. Zaidabadi was released in December 2009, and Sadeghi was released after 40 days of detention. There was no information as to whether the two were ever tried.

During protests in December 2009 after the death of Grand Ayatollah Hussein-Ali Montazeri and during Ashura celebrations, the ICHRI and IHRV reported that authorities detained between 200 and 1,000 persons, many of whom remained in prison at year's end, some facing death sentences. Death sentences were given to individuals who were accused of moharebeh (see section 1.a.) for participation in Ashura Day protests. On March 17, the ICHRI reported that Revolutionary Court judge Abolqasem Salavati sentenced teacher Abdolreza Ghanbari to death for moharebeh based on his participation in Ashura protests. According to the ICHRI, Ghanbari did not have access to a fair trial nor permission to select a lawyer for his defense. The Prosecutor's Office requested death sentences for at least 11 other individuals arrested during 2009 Ashura celebrations.

There were no reports of Iranian-American journalists arrested during the year; however, in 2009 and previous years, security forces arrested several Iranian-American journalists and academics on charges of espionage and "acting against national security." Prison authorities subjected the activists to harsh interrogation techniques and solitary confinement and in most cases kept them in prison for several months. At year's end one academic was free on bail but not permitted to depart the country.

There were no updates in the 2008 cases of Ebrahim Mirnehad or Dr. Arash Alaei, both whom remained in prison at year's end. Authorities sentenced Mirnehad to five years' imprisonment on charges of "acting against national security" and "spreading propaganda," charges that, according to AI, stemmed from his public condemnation of his brother's execution earlier in the year. Dr Alaei and his

brother, physicians specializing in the prevention and treatment of HIV/AIDS, were found guilty of "cooperating with an enemy government." AI reported that Dr. Kamiar Alaei remained in prison at year's end.

Pretrial detention was often arbitrarily lengthy, particularly in cases involving alleged violations of national security laws. Approximately 25 percent of prisoners held in state prison facilities were reportedly pretrial detainees. According to HRW, a judge may prolong detention at his discretion, and pretrial detention often lasted for months.

The government reportedly put individuals under house arrest without due process in order to restrict their movement and communication. Authorities placed former presidential candidates Mehdi Karroubi and Mir Hossein Mousavi under de facto house arrest during the year. In previous years the government used house arrest for senior Shia religious leaders whose views regarding political and governance issues were at variance with the ruling orthodoxy; however, there were no new confirmed instances of this practice since 2009. Grand Ayatollah Montazeri, the most prominent cleric under such restrictions, died in December 2009.

e. Denial of Fair Public Trial

After the 1979 revolution, the judicial system was revised to conform to an Islamic canon based on the Qur'an, Sunna (the traditions of the Prophet), and other Islamic sources. The constitution provides that the judiciary be "an independent power"; in practice the court system was corrupt and subject to political influence. The constitution provides that the head of the judiciary is a cleric chosen by the supreme leader. The head of the Supreme Court and prosecutor general also must be clerics.

Islamic revolutionary courts try offenses viewed as potentially threatening to the Islamic Republic, including threats to internal or external security, narcotics and economic crimes, and official corruption. A special clerical court examines alleged transgressions within the clerical establishment, and a military court investigates crimes connected with military or security forces. A media court hears complaints against publishers, editors, and writers, including Internet cases.

Trial Procedures

Many aspects of the prerevolutionary judicial system survive in the civil and criminal courts. According to the constitution and criminal procedure code, a

defendant has the right to a public trial, presumption of innocence, a lawyer of his or her choice, and the right of appeal in most cases that involve major penalties. These rights were not respected in practice. Panels of judges adjudicate trials; there is no jury system in the civil and criminal courts. In the media court, a council of 11 persons selected by the court adjudicates cases. No defendants in any court had the right to confront their accusers, nor were they granted access to government-held evidence. During the year human rights groups noted the absence of procedural safeguards in criminal trials.

During the year AI, HRW, RSF, and several other human rights groups continued to condemn trials in the revolutionary courts for disregarding international standards of fairness. In August 2009 the UN special rapporteur on torture and other cruel, inhuman, or degrading treatment or punishment, the special rapporteur on the situation of human rights defenders, and the vice chairperson of the working group on arbitrary detention expressed "serious concern" about the situation of detainees in the country.

The government often charged individuals with vague crimes such as "antirevolutionary behavior," "moral corruption," "siding with global arrogance," moharebeh, and "crimes against Islam." Prosecutors imposed strict penalties on government critics for minor violations. When postrevolutionary statutes did not address a situation, the government advised judges to give precedence to their knowledge and interpretation of Islamic law. The head of the judiciary chose revolutionary court judges in part due to their ideological commitment to the system. Secret or summary trials of only five minutes' duration frequently occurred. Other trials were deliberately designed to publicize a coerced confession.

On February 3, a revolutionary court sentenced student activist Mohammad Amin Valian to death in a group trial for moharabeh for allegedly having thrown three stones and shouted "death to the dictator!" during a December 2009 Ashura protest. Government officials arrested Valian on January 12, after Damghan University's Basij student publication published an article about him. Authorities denied repeated requests from his family on his whereabouts, and according to ICHRI they only said he was held in a "special location." According to the same report, he was also denied access to counsel. On May 15, an appeals court rejected the revolutionary court decision and sentenced him to a three-and-one-half years' imprisonment and a fine of 300,000 toman (\$300). As of September authorities had granted Valian conditional release.

At year's end the ICHRI reported that approximately 600 inmates remained on death row in Vakilabad, with the majority convicted for narcotics-related crimes. Some inmates reported that they had been tortured and forced to make confessions but that judges ignored their claims of physical coercion.

In August 2009 the Tehran Revolutionary Court convened the first of a series of televised mass trials for more than 100 opposition politicians and activists detained after the June 2009 election; the opposition referred to them as show trials. Among those on trial were senior proreform politicians, lawyers, and journalists, including former vice president Muhammad Ali Abtahi; journalist and former interior ministry official Muhammad Atrianfar; intellectual and prodemocracy activist Saeed Hajjarian, reportedly tortured in detention (see section 1.c.); filmmaker and *Newsweek* reporter Maziar Bahari (see section 2.a.); an Iranian-American academic; and Mohsen Mirdamadi, the leader of the largest reformist party, the Islamic Iran Participation Front. The prosecution accused the defendants of fomenting a "velvet revolution," acting against national security, and having ties to British spies. Authorities did not permit any of the defendants access to legal counsel prior to the trial. Some of those charged read aloud "confessions" in which they denounced former colleagues and declared there had been no fraud in the election. There were allegations that several defendants, including Abtahi and opposition candidate Mousavi supporters Mostafa Tajzadeh, Abdollah Ramezanzadeh (see section 1.d.), and Mohsen Aminzadeh, underwent "massive interrogation" in Evin Prison.

At year's end Sakineh Mohammadi Ashtiani awaited execution for alleged adultery and murder while her son and lawyer remained imprisoned. In 2006 after having already been convicted and punished with 99 lashes for involvement in her husband's murder, a court sentenced Ashtiani to death by stoning for adultery. According to the NGO Women Living Under Muslim Laws, two judges declared her not guilty based on the lack of evidence in the case, but the other three judges found her guilty based on "divine knowledge of the judge" (*elm-e ghazi*), a legal provision that allows judges to make a ruling in the absence of conclusive evidence. On September 8, a Foreign Ministry representative declared that the stoning sentence had been suspended but suggested she might still be hanged on charges related to her husband's murder. Human rights groups maintained that Ashtiani's confession was coerced and decried the lack of due process in this case. One of Ashtiani's lawyers, Mohammed Mostafaei, sought asylum in Norway during the year (see section 1.d.).

Opposition groups continued to question the legitimacy of the special clerical court system. The court is headed by a scholar in Islamic law and is capable of ruling on legal matters through independent interpretation of Islamic legal sources. Clerical courts, which investigate alleged offenses and crimes by clerics and which the supreme leader directly oversees, are not provided for in the constitution, and they operated outside the domain of the judiciary. According to a 2007 AI report, defendants could be represented only by court-nominated clerics who are not required to be qualified lawyers. According to the AI report, in some cases a defendant was unable to find a cleric willing to act as defense counsel and was tried without legal representation. Critics alleged that clerical courts were used to prosecute clerics for expressing controversial ideas and for participating in activities outside the sphere of religion, such as journalism or reformist political activities.

On December 6, the special clerical court summoned Mohammad Mehman Navaz, a supporter of Ayatollah Boroujerdi (see section 1.d.).

Political Prisoners and Detainees

Statistics regarding the number of citizens imprisoned for their political beliefs were not available, but human rights activists estimated the number in the hundreds. Approximately 500 democracy activists and journalists were in detention in Evin Prison alone at year's end. According to opposition press reports, the government arrested, convicted, and executed persons on questionable criminal charges, including drug trafficking, when their actual offenses were reportedly political. The government charged members of religious minorities and others with crimes such as "confronting the regime" and apostasy and followed the same trial procedures as in cases of threats to national security. During the year the government rounded up students, journalists, lawyers, and political activists to silence them or prevent them from organizing protests.

Authorities occasionally gave political prisoners suspended sentences or released them for short or extended furloughs prior to completion of their sentences, but they could order them to return to prison at any time. Suspended sentences often were used to silence and intimidate individuals. The government also controlled political activists by temporarily suspending baseless court proceedings against them and allowing authorities to rearrest them at any time, and it attempted to intimidate activists by calling them in repeatedly for questioning. The government issued travel bans on former political prisoners; for instance, authorities continued to prevent former political prisoner Siamak Pourzand from leaving the country to

receive medical care and to join his wife, also a former political prisoner, and family abroad.

Authorities routinely held political prisoners in solitary confinement for extended periods and denied them due process and access to legal representation. Political prisoners were also at greater risk of torture and abuse in detention. The government did not permit international humanitarian organizations or UN special rapporteurs access to political prisoners.

The government imprisoned persons throughout the year for political reasons (see sections 1.a. through 1.e. and section 7.a.), including minority activists (see section 6). Human rights organizations reported that 21 Kurdish political prisoners faced execution and 44 Baha'i remained in prison at year's end. The government also reportedly held some persons in prison for years under charges of sympathizing with terrorist groups such as the MEK.

On February 28, an appeals court upheld 10-month prison sentences for three student activists from Babol Norshirvani University (Mohsen Barzegar, Iman Sadighi, and Nima Nahvi) and one-year suspended sentences for Hamid Reza Jahantigh, Hessam Bagheri, Siavash Salimi Nejad, and Ali Taghipour. The students, most of whom were also banned from educational institutions for one to five years, were convicted of "actions against national security" and "propagation against the regime," based on their alleged planning of and participation in protests and contacts with antigovernment entities. Authorities conditionally released Barzegar and Sadighi on July 17, but on November 9, police rearrested Barzegar at his home prior to National Students Day, allegedly without a warrant (see section 2.b., Freedom of Association). Nahvi remained in prison at year's end.

On May 5, Revolutionary Court Branch 28 sentenced Bahareh Hedayat, a prominent student activist, to two years in prison for "insulting the supreme leader," six months for "insulting the president," and five years for "actions against national security, propagation of falsehoods, and mutiny for congregation." An earlier suspended sentence of two years in prison for participating in a women's rights protest was added to make Hedayat's total sentence nine and one-half years in prison. In July Appellate Court Branch 24 upheld her sentence. In late December authorities reportedly presented her with new charges of "disturbing public opinion" based on a letter she wrote from prison on National Students Day. At year's end Hedayat was serving her sentence in Evin Prison where authorities had recently banned her visitors "until further notice."

On August 8, the Supreme Court rejected Jafar Kazemi's death sentence appeal. Authorities arrested Kazemi, an editor and publisher of academic books at Amir Kabir University, during the 2009 election protests and reportedly tortured him physically and psychologically during his detention. His interrogators allegedly threatened to arrest his wife and children if he did not confess. Kazemi was convicted of moharebeh and sympathy with the MEK, but he pled not guilty. At year's end Kazemi awaited execution.

On September 4, authorities summoned Nasrin Sotoudeh, a prominent human rights lawyer and women's rights activist, to Evin Prison where they arrested her on charges of "propaganda against the state," "a conspiracy to disturb order," and cooperation with Nobel Peace Prize laureate Shin Ebadi's Defenders of Human Rights Center (DHRC). Shortly after her detention, Sotoudeh went on a 70-day hunger strike to protest her treatment, including solitary confinement. On December 27, authorities presented more charges against her, including "not wearing the hijab [headcovering]" and "not observing Islamic standards of conduct." At year's end she remained in solitary confinement and weakened from her hunger strike. During questioning, her interrogators reportedly told her they controlled the length of her sentence, which would be at least 10 years.

On April 20, Branch 26 of the Revolutionary Court sentenced Mahdieh Golrou, student activist and member of the Advocacy Council for the Right to Education, to two years and four months in prison for association with the MEK. She began serving the sentence immediately, along with a suspended one-year sentence for her activities related to educational rights. In late December authorities reportedly presented her with new charges of "disturbing public opinion" based on a letter she wrote from prison on National Students Day. Golrou suffered from intestinal problems during her continuing imprisonment in Evin Prison.

On January 26, a revolutionary court sentenced Shabnam Madadzadeh, a member of the Islamic Association and deputy general secretary of the student organization Tahkim Vahdat, and her brother Farzad Madadzadeh to five years' imprisonment for moharebeh and propaganda against the state, and in June an appeals court upheld the sentence. Their lawyer, Mohammad Oliyaiefard, was not present as he was serving a sentence for speaking out about another client, a juvenile executed for a murder allegedly committed when he was 17 years old. Authorities arrested the Madadzadehs in February 2009, and officials in Ward 209 of Evin Prison allegedly beat and whipped Farzad in front of Shabnam to coerce her to confess. Human rights groups reported during the year that Shabnam suffered from

digestive ailments and heart problems and that she lacked medical care. The Madadzadehs remained in Gohardasht Prison at year's end.

At year's end Abdolfattah Soltani, a prominent human rights lawyer and DHRC spokesperson, continued to face a pending court case for security-related charges. In June 2009 authorities arrested him without a warrant and held him for 72 days without charges, including 17 days in solitary confinement, until his release in August 2009.

On December 29, an interrogator known as "Mahdavi" reportedly informed Ebrahim Yazdi's wife that authorities had transferred the ailing former foreign minister and the secretary-general of the Freedom Movement of Iran to a safe house in a military zone. Authorities detained 80-year-old Yazdi at least three times since the June 2009 elections, once when he was in an intensive care hospital ward. During one of his imprisonments, Yazdi spent 50 days in solitary confinement. On October 1, officials arrested Yazdi in a private home in Isfahan for allegedly participating in "illegal prayer" while he attended the memorial service for the daughter of a friend. His wife was allowed to visit him only after he had been jailed for 40 days. Yazdi was recovering from bladder cancer surgery as well as heart surgery, and his family believed his life is in danger because of the physical and psychological strains of prison, lack of medical care, and unsanitary conditions.

During the year Abdollah Momeni continued to serve a four and one-half-year prison sentence for disseminating propaganda against the country by transmitting news of street protests and colluding to harm national security. In June 2009 police arrested Momeni, spokesperson for the Alumni Association of Iran (Advar-e Tahkim Vahdat), a legally registered political organization, and authorities sentenced him in November 2009 after he appeared at the fifth session of the "show trials." AI reported that authorities used as evidence against him Momeni's "contacts" with AI and HRW. In August he wrote a letter to Supreme Leader Khamenei in which he detailed the physical and psychological abuse he had endured at Evin Prison including severe beatings and suffocations to the point of unconsciousness during interrogations, interrogators holding his head in a full toilet bowl, solitary confinement for 86 days, and repeated threats of rape and imminent execution. Momeni also said his interrogators forced him to practice false confessions before his trial.

As of July 7, Naseh Faridi remained free pending an appeal of his January 7 sentence to six years in prison and 74 lashes for allegedly passing information to

the MEK on account of his activities in the SCDPP, including interviews with foreign media. On June 29, authorities released Azeri minority activist Ali Bikas from Evin Prison after an appeals court acquitted him of all charges. Authorities arrested the two SCDPP members in June 2009 and tried them in the "show trials" later that year.

At year's end there had been no verdict announced in the mid-October revolutionary court trial of Mohammad-Ali Dadkhah, a member of the Center for Defending Human Rights and an attorney for several political activists. In July 2009 police arrested Dadkhah at his office and charged him with meeting with "foreign enemies." HRW reported that at the time of his arrest he was meeting with colleagues to discuss the judiciary's proposal to restrict the independence of the bar association. Dadkhah remained free on a 500 million toman (\$500,000) bail at year's end.

In March authorities released an Iranian-American academic on bail of 800 million toman (\$800,000) but continued to prevent him from leaving the country at year's end. In July 2009 authorities first arrested him on charges of espionage based on his association with the Open Society Institute, which the government had previously approved. He appeared before the "show trials" in August 2009 and in October 2009 was sentenced to 15 years in prison, later reduced to five years by an appellate court.

As of November 16, former university student Misagh Yazdan-Nejad was seriously ill with a respiratory illness, unable to walk or eat. Gohardasht Prison authorities reportedly refused to grant him leave to undergo surgery. In September 2009 a revolutionary court sentenced Yazdan-Nejad to 13 years' imprisonment for participating in a 2007 demonstration. The government had previously executed three of Yazdan-Nejad's uncles and imprisoned both his parents on political grounds. At year's end there were no further updates on Yazdan-Nejad's status.

In September 2009 a reformist Web site reported that police detained Mohammad Ozlati-Moghaddam, head of opposition leader Mousavi's veterans' affairs committee, following a search of his home; he was held for an unknown length of time. On November 15, a reformist Web site reported that security agents had again arrested Ozlati-Moghaddam, and his status was unknown at year's end.

On March 16, authorities released economist and journalist Saeed Leylaz from prison on bail of 500 million toman (\$500,000) to seek medical treatment. In December 2009 authorities sentenced Leylaz to nine years in prison, later reduced

to five, for allegedly maintaining ties with foreigners and working to overthrow the government.

At year's end Emadaddin Baghi, founder of the Committee for the Defense of Prisoners' Rights, was incarcerated in Evin Prison, serving a six-year sentence for "propaganda against the system" and "colluding against the security of the regime" in relation to an interview with the late Grand Ayatollah Montazeri and a one-year sentence for his work advocating for prisoners' rights. A revolutionary court also banned him from participating in political activity for five years. In December 2009 authorities arrested Baghi and detained him for 180 days. Authorities imprisoned Baghi on previous occasions since 2000 for his activities as a journalist and his campaigns against the government's execution of juvenile offenders.

At year's end Kurdish and women's rights activist Zeinab Bayazidi continued serving a four-year sentence for acting against national security. Security forces arrested her in 2008; she was reportedly tried behind closed doors without access to an attorney of her choosing. According to human rights organizations, Bayazidi went on a hunger strike in July to protest a prison official's treatment of several female prisoners.

At year's end Abbas Khorsandi, a political activist and founder of the Iran Democratic Party, an Internet forum for political debate, remained in Evin Prison, where authorities reportedly prevented him from seeing a doctor despite his poor health. In 2008 a Tehran revolutionary court upheld an eight-year prison sentence against Khorsandi for "acting against national security through formation of an illegal association." During the year Khorsandi's family repeatedly expressed concern about his poor health, especially his heart disease, but the government made no response.

There were no updates in the following 2008 cases; all individuals were believed to be in prison at year's end: writer and student leader Amin Ghazain Tehran; human rights lawyer Saleh Kamrani; Hadi Qabel, reformist cleric and member of the reformist political group Islamic Iran Participation Front; and Office for Consolidating Unity spokesman Ali Nikunesbati.

Ayatollah Mohammad Kazemeini Boroujerdi remained in Evin Prison despite appeals for his release on medical grounds. Human rights groups claimed he had been in solitary confinement without access to an independent lawyer since his 2006 arrest. Prior to Boroujerdi's arrest, the government had increased pressure on him for his belief that religion and the state should be separate.

Political prisoner Behrouz Javid-Tehrani, who spent four years in prison for his activities during the 1999 student uprising and was sentenced in 2005 to seven more years in prison following a secret trial without legal representation, remained in prison at year's end. At the time of the most recent conviction, Javid-Tehrani was in solitary confinement in Gohardasht Prison in Karaj, where he alleged security agents severely tortured him on numerous occasions.

Civil Judicial Procedures and Remedies

By law the judiciary is independent from the executive and legislative branches; in practice it remained under the influence of executive and religious government authorities. According to the constitution, the Court of Administrative Justice, under the supervision of the head of the judiciary, investigates the grievances of citizens with regard to government officials, organs, and statutes. In practice citizens had limited ability to sue the government. Citizens were not able to bring lawsuits against the government for civil or human rights violations. Dispute resolution councils are available to settle minor civil and criminal cases through mediation before referral to courts.

Property Restitution

The constitution allows the government to confiscate property acquired illicitly or in a manner not in conformity with Islamic law, and the government particularly targeted religious minorities, especially members of the Baha'i faith. During the year there were reports that authorities destroyed several Sufi libraries containing sacred texts and took over nursing homes and hospitals connected to Sufi orders.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The constitution states that "reputation, life, property, [and] dwelling[s]" are protected from trespass except as "provided by law," but the government routinely infringed on this right. Security forces monitored the social activities of citizens, entered homes and offices, monitored telephone conversations and Internet communications, and opened mail without court authorization. There were widespread reports that government agents entered, searched, and/or ransacked the homes and offices of reformist activists and journalists in an attempt to intimidate them.

For example, on several occasions during the year government security forces raided the home and offices of human rights attorney Nasrin Sotoudeh (see section 1.e., Political Prisoners), confiscating her computer and cell phone, along with those belonging to her husband and children, and many of her clients' files.

On September 16, government security forces raided the office of former presidential candidate Mir Hossein Mousavi and confiscated computers and other property (see section 3).

Unlike in 2009, there were no reports that Basij forces carried out nightly raids throughout Tehran, destroying public property, entering homes, and beating civilians in an attempt to stop nightly protest chants. However, there were some reports that Basij forces raided universities in February to stop protesters.

During the year vigilantes continued to attack young persons considered "un-Islamic" in their dress or activities, invade private homes, abuse unmarried couples, and disrupt concerts. In May according to press reports, authorities launched an intensified campaign to enforce the mandatory hijab and issued a list of acceptable men's hairstyles. According to press reports, morality police have stopped or detained more than two million individuals since 2007 for inappropriate hairstyles (usually related to the length of men's hair or beards) or bad hijab.

There were reports during the year that the MOIS arrested and harassed family members of political prisoners and human rights activists, banning them from speaking to foreign media or traveling abroad, blocking their telephone conversations, making false criminal charges against them, and blocking their access to higher education.

From early February to March 9, authorities detained Saleh Noghrehkar, the nephew of former presidential candidate Mir Hossein Mousavi and the head of the legal team for Mousavi's campaign, in Evin Prison, reportedly to intimidate Mousavi and his wife.

Throughout the year authorities issued statements threatening to arrest Mehdi Hashemi on corruption charges, the expatriate son of influential cleric and former president Akbar Hashemi Rafsanjani. Some human rights organizations alleged these threats were retaliation for Rafsanjani's criticism of the government after the 2009 postelection protests.

On January 13, authorities released from prison Nushin Ebadi, a professor of dentistry and sister to Nobel Prize-winning human rights lawyer and activist Shirin Ebadi. Intelligence officers arrested Nushin, who was not involved in human rights issues and did not participate in any of the postelection protests, in December 2009.

There were also reports that authorities threatened and arrested family members of expatriates who posted critical comments about the country on social networking Web sites such as Facebook. According to media accounts, an Iranian-American studying abroad reported in 2009 that he received an e-mail warning him that his relatives in Iran would be harmed if he did not delete an online petition he had created relating to the imprisonment in Iran of a human rights activist; he claimed that security agents arrested his father two days later and held him briefly.

Authorities occasionally entered homes to remove satellite television dishes, which are illegal in the country.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The constitution provides for freedom of expression and of the press, except when the words are deemed "detrimental to the fundamental principles of Islam or the rights of the public." In practice the government severely restricted freedom of speech and of the press. There were no basic legal safeguards for freedom of expression, and the government--notably the judiciary--arbitrarily enforced censorship measures against the independent press. Government censorship and self-censorship limited dissemination of information during the year. The government frequently threatened and jailed journalists as a consequence of their work. It also closed the offices of the journalists' union in August 2009.

Individuals could not criticize the government publicly or privately without reprisal, and the government actively sought to impede criticism.

On December 19, according to RSF, intelligence officials in civilian dress arrested Fariborz Rais Dana, an economist and a member of the board of directors of the country's writers' association. Other sources noted that Dana's arrest occurred shortly after his interview with BBC Persian in which he criticized the government's subsidy reform policies. At year's end there were no updates in his case, and his whereabouts were unknown.

The government held significant influence over all media in the country. The country's media outlets were varied, including state-controlled television, radio, and print publications, as well as private newspapers and magazines that cover current affairs, politics, the arts, and sports. The government closely monitored reporters and media outlets, and private media lacked independence in practice. Journalists who failed to abide by government guidelines faced intimidation, arrest, or closure of their publications. The government required foreign correspondents to provide detailed travel plans and topics of proposed stories before it granted visas, and it attempted to influence them to garner more favorable coverage. The government's Press Supervisory Board (PSB) was responsible for issuing press licenses, which it sometimes revoked in response to articles critical of the government, and for examining complaints filed against publications or individual journalists, editors, or publishers.

According to Article 175 of the constitution, private broadcasting is illegal. The government controlled and maintained a monopoly over all television and radio broadcasting facilities through a state-controlled entity, the Voice and Vision Organization. Radio and television programming--the principal source of news for many citizens, especially in rural areas--reflected the government's political and socioreligious ideology. Foreign programs such as BBC Persian and Voice of America were subject to government jamming. Satellite dishes that received foreign television broadcasts were forbidden, and the government periodically confiscated them from homes. For instance, according to opposition websites, police began confiscating satellite dishes from rooftops in Tehran ahead of the February 11 anniversary of the Islamic revolution. However, most satellite dishes in individual homes reportedly continued to operate.

During the year the government detained, jailed, tortured, or fined numerous publishers, editors, and journalists (including Internet media) for their reporting. RSF reported that 37 journalists remained in detention as of December 20. The penal code states that "anyone who undertakes any form of propaganda against the state" can be imprisoned for as long as one year; the law does not define "propaganda." The law also subjects writers to prosecution for instigating crimes against the state or national security or "insulting" Islam; the latter offense is punishable by death.

On January 8, according to the CPJ, authorities arrested Mostafa Dehghan, a freelance journalist who wrote about social issues for several newspapers and the women's rights Web site, Change for Equality, and detained him in Evin Prison's

Ward 209. According to PBS *Frontline*, he remained in prison as of December 10, and there was no evidence that authorities had charged him with any crime.

On February 1, security officials beat and arrested Abolfazl Abedini Nasr, a reporter for *Bahar Ahvaz*, in his home in Ramhormoz and transferred him to Evin Prison, where he reportedly underwent harsh torture during interrogation, resulting in severe heart damage. On April 4, Branch 1 of the Revolutionary Court in Ahvaz sentenced him to 11 years in Karoun Prison in Ahvaz for association with foreign governments, membership in HRAI, and "propaganda against the regime" based on his interviews with foreign media. On April 13, Abedini collapsed in and was admitted to the prison clinic, according to AI. On August 19, HRAI reported that prison authorities had banned Abedini from leaving his cell until further notice, preventing him from visiting the prison clinic to receive regular required medical treatment. There was no information about Abedini's status at year's end, and he remained in prison.

On February 9, according to the CPJ, authorities arrested Ali Malihi, a journalist for *Etemad*, *Irاندokht*, *Shahrvand-e-Emruz*, and *Mehrnameh*, and a revolutionary court tried and sentenced him to four years in prison for "congregation and mutiny against the regime," "propagation against the regime," "participation in illegal gatherings," "publication of falsehoods," and "insulting the president." As of October 1, authorities reportedly had not permitted him to meet with his lawyer except during court proceedings. The CPJ reported he was held in solitary confinement in Evin Prison and went on at least one hunger strike to protest his treatment.

On March 2, authorities rearrested journalist and activist Mahboubeh Karami, the fifth time she was arrested in the last three years (see section 6, Women).

From June 12 until his December 22 release on 500 million toman (\$500,000) bail, authorities detained Abdolreza Tajik, who writes for reformist newspapers *Fath*, *Bonyan*, *Bahar*, and *Shargh*, in Evin Prison. This was Tajik's third arrest since the disputed June 2009 elections. At year's end he faced charges of "propagation against the regime" in connection with his membership in the DHRC, according to news reports. His sister, Parvin Tajik was also sentenced to 18 months in prison for pursuing her brother's case.

On July 28, a court sentenced Mostafa Kazzazi, the publisher of banned reformist daily *Seda-ye Edalat*, in absentia to 11 months in jail on charges of "propaganda against the Islamic regime" and inciting unrest. He was in prison at year's end.

In October authorities arrested two German reporters while they were interviewing the family of Sakineh Mohammadi Ashtiani (see section 1.e.). At year's end the two reporters remained in custody.

On at least two occasions in December, police officials raided the offices of reformist daily *Sharq* and arrested editor in chief Ahmad Gholami, managing director Ali Khodabaksh, and reporters Kayvan Mehregan, Amir Hadi Anvari, Rayhaneh Tabatabaee, and Mehran Faraji. Local news sites reported that Tehran's general and revolutionary courts prosecutor Abbas Jafari Dolatabadi said the arrests were based on "security charges." Authorities reportedly released Gholami, Khodabaksh, and Anvari on bail before year's end, but Mehregan, Tabatabaee, and Faraji reportedly remained in prison. According to press reports, an unidentified *Sharq* journalist said authorities raided the newspaper offices because of an upcoming Students' Day issue.

On December 9, Branch 28 of the Tehran Revolutionary Court sentenced Mashallah Shamsolvaezin, head of the journalists' association and a prominent reform journalist, to 16 months in prison for "insulting the president" and "weakening" the government based on interviews he gave to international media. At year's end it did not appear as though his sentence had begun.

There were updates in several cases from previous years.

On October 9, the Tehran Revolutionary Court sentenced Saeed Razavi-Faghih, a former editorial writer for several reformist newspapers and former member of the Office of Consolidating Unity (a reformist student organization), in absentia to four years' imprisonment and 74 lashes for antiregime propaganda, participating in illegal gatherings, and insulting the supreme leader, and it summoned him to Evin Prison to begin his sentence. In January 2009 security agents confiscated his passport when he returned to the country from France, where he had been studying since 2004. At year's end he remained in prison.

On February 1, an intelligence court summoned Alireza Saghafi and held him until February 14. Saghafi, who edited the magazine *Rah Ayandeh* until authorities closed it in 2008, was sentenced to three years in prison. In January an appeals court confirmed the one-year suspended prison sentence for Amir Yaghoubali, a journalist for the daily *Etemad* for "activities against national security" and "disturbing public order" based on his writings. Authorities arrested the two

journalists along with several others in May 2009 during International Workers Day demonstrations.

According to RSF, authorities arrested more than 100 journalists after the June 2009 election, and 30 others fled the country, the largest exodus of journalists since the 1979 revolution.

Mohammad Ghouhani, a journalist and editor in chief of the banned *Etemad Meli* daily, who was detained from June through October 2009, reported that intelligence agents continued to harass him during the year.

In January a court sentenced journalist and editor of *Khorade-no* Bahman Ahmadi-Amoee to seven years in prison and 34 lashes, reduced in March by an appeals court to five years' imprisonment. There was no information as to whether the lashing sentence was upheld. After a brief visit home, Ahmadi-Amoee began serving his sentence in Evin Prison on May 30. He remained in prison at year's end. On June 8, the 26th Chamber of the Tehran Revolutionary Court sentenced his wife Jila Baniyaghoub to one year in prison and banned her from working as a journalist for 30 years, reportedly due to her writings related to election events and women's rights, and October 25 press reports stated that an appeals court had confirmed the verdict. Baniyaghoub's lawyer said there was no legal basis for the 30-year journalism ban. In June 2009 authorities arrested the two journalists in their home. Authorities reportedly prevented Ahmadi-Amoee's access to legal counsel and held him in solitary confinement for 65 days; his lawyer had no access to any government evidence against him.

On May 10, Branch 26 of the Revolutionary Court sentenced Iranian-Canadian *Newsweek* reporter Maziar Bahari in absentia to 13 years in prison and 74 lashes for conspiring against the state for his presence at postelection protests, possession of "secret" documents based on a public court document relating to arrests, propagandizing against the system, insulting the supreme leader by implying that he was a dictator, disrupting public order by reporting on a clash between protesters and Basij forces, and insulting the president. Authorities arrested Bahari in June 2009 and held him until they permitted him to leave the country in October. Bahari remained outside the country at year's end.

At year's end despite serious health problems, journalist and member of the Committee for Human Rights Reporters Hengameh Shahidi continued to serve her six-year sentence in Evin Prison for participating in postelection demonstrations and "spreading propaganda against the holy Islamic Regime," based on an

interview with the "antirevolutionary" BBC. On October 28, authorities reportedly granted medical leave to Shahidi, originally arrested in June 2009, but returned her to prison on November 14 with no explanation.

At year's end journalist and blogger Shiva Nazar Ahari was free pending the start of her sentence for four years' imprisonment and 74 lashes based on her political and journalistic activities. In December 2009 authorities arrested her and two of her colleagues from the Committee for Human Rights Reporters as they were headed to Qom for Grand Ayatollah Montazeri's funeral; she remained in prison until released on bail on September 12. On January 20, security forces released her colleague, Nasrin Vaziri, after detaining her for almost a month

According to international media, authorities released Syrian national Reza al-Bacha on January 10. He was arrested in December 2009 while reporting on demonstrations.

On October 15, authorities released *Kalemeh Sabz* editor Alireza Behshtipour Shirazi on a bail of 5 million toman (\$5,000) pending trial for "acting against national security." The editor was arrested in December 2009.

In December the CPJ reported that writer and journalist Mostafa Izadi remained in prison.

There was no information as to the status of journalist Mohammad-Hossein Falahiezadeh, whom authorities transferred to Evin Prison's medical clinic due to his critical health situation in September 2009. Falahiezadeh had served his 2008 prison sentence for reporting on street protests by members of the Ahvazi Arab minority, but MOIS officials reportedly stated his release was contingent on meeting bail, which he could not afford.

During the year the government banned, blocked, closed, and censored publications that were critical of the government. The media law forbids government censorship, but it also forbids disseminating information that it considered damaging to the government. Government officials also routinely intimidated journalists into practicing self-censorship. Public officials often lodged criminal complaints against reformist newspapers; the PSB referred complaints to the media court for further action, including closure and fines. The court conducted its hearings in public with a jury of appointed clerics, government officials, and editors of government-controlled newspapers. Some human rights groups asserted that the increasingly conservative media court assumed responsibility for cases

before PSB consideration. The government censored both reformist and conservative newspapers after they published articles contradicting the official line, and it permanently closed others during the year, including more than 10 national publications including *Etemad*, the country's largest circulation reformist daily, and the weekly *Irاندokht* magazine (early March), *Shahrvand-e Emrouz* (November 8), *Chelcheragh* (November 20), and *Shargh* (December 8). The following papers banned in 2009 remained so: *Kalameh Sabz*, *Etemad-e Melli*, the business newspaper *Sarmayeh*, and *Hayat-e no*.

According to an August 18 ruling by the Ministry of Culture and Islamic Guidance allegedly obtained by an opposition group, the publication ban on any news or information related to opposition figures Mehdi Karroubi and Mir-Hossein Mousavi and former president Mohamad Khatami continued.

In December 2009 according to RSF, the Ministry of Culture and Islamic Guidance issued a directive banning print and Internet articles about cleric Grand Ayatollah Montazeri, a critic of the government who died on December 19. At year's end the ban remained in effect.

At various times in 2008, government officials advised reporters not to use the names of unauthorized political parties and to "censor pages which are likely to create a dispute," observing the country's "religious, moral, and national sensitivities."

The Ministry of Culture and Islamic Guidance must grant permission to publish any book, and it inspected foreign printed materials prior to their domestic release.

Internet Freedom

NGOs reported that the government continued to increase control over the Internet during the year as more citizens used it as a source for news and political debate. According to 2010 Internet World Stats, approximately 43 percent of the country's inhabitants used the Internet.

The government monitored Internet communications, especially via social networking Web sites such as Facebook, Twitter, and YouTube, and collected individuals' personally identifiable information in connection with peaceful expression of views. The government threatened, harassed, and arrested individuals who posted comments critical of the government on the Internet; in some cases it reportedly confiscated their passports or arrested their family

members (see section 1.f.). Freedom House and other human rights organizations reported that authorities sometimes stopped citizens at Tehran International Airport as they arrived in the country, asked them to log into their YouTube and Facebook accounts, and in some cases forced them to delete information.

On February 10, the country's telecommunications agency announced that it had permanently suspended Google's e-mail service; however, "G-mail" services continued throughout the year and were only periodically interrupted.

All Internet service providers (ISPs) must be approved by the Ministry of Culture and Islamic Guidance. The government also required all owners of Web sites and blogs in the country to register with the Ministry of Culture and Islamic Guidance; in practice, this regulation was rarely enforced. The Press Law and penal code both apply to electronic media, and the PSB and judiciary used such laws to close Web sites during the year. The government also used filtering software to block access to domestic blogs on all sides of the political spectrum and some Western Web sites, reportedly including the Web sites of prominent Western news organizations and NGOs. According to RSF the government blocked access to thousands of Web sites during the year, and in some cases ISPs redirected computer users from opposition Web sites to progovernment news sites.

The government also censored Web site content to control citizens' access to information. According to Freedom House, content from opposition leaders' Web sites was deleted during the year. The government also imposed limits on Internet speed and technology, making it difficult to download Internet material or to circumvent government restrictions to access blocked Web sites. According to multiple sources the government's ability to censor the Internet improved during the year. Internet NGOs reported that the government was attempting to block Internet users' access to circumvention technology. According to RSF, the Committee in Charge of Determining Unauthorized Web Sites--which included representatives from the Ministry of Communications and Information Technology, the Ministry of Culture and Islamic Guidance, the Ministry of National Security, and the Tehran Public Prosecutor's Office--determined blocking criteria.

During the periods prior to the anniversary of the Islamic Revolution (February 11), the anniversary of the 2009 presidential election (June 12), and Students' Day (December 7), authorities slowed Internet access and blocked access to Facebook and Twitter.

During the year the government prosecuted and punished persons for peaceful expression of dissenting views via the Internet.

On February 25, authorities issued a 91-day prison sentence for blogger Mohammad Esmaeelzadeh for "insulting the supreme leader," and Esmaeelzadeh served the sentence during the year. According to ICHRI, the Babol prosecutor's office awarded him a four day furlough in April ostensibly attend his child's birth, although he was not allowed to leave the town of Babol and travel to Karaj where his family lived.

From June 20 until his temporary release on bail on August 9, authorities detained Hamed Saber, a freelance photographer, after he posted photographs he took of Tehran street protests on photo-sharing Web sites such as Flickr and Picasa. There were no updates on his case at year's end.

On September 18, according to RSF, eight intelligence ministry officials entered student blogger Navid Mohebbi's home and arrested him. Authorities released him from Sari Prison on December 25 after a revolutionary court sentenced him to a three-year suspended sentence. He was charged with membership in and support for the One Million Signatures Campaign (see section 6, Women), acting against national security, propaganda against the state through connection with foreign media, insulting the founder of the Islamic Republic, and insulting the supreme leader. Mohebbi's trial took place behind closed doors; not even his lawyer attended.

There were developments in several cases from previous years.

In July the Second Branch of the Ghazvin Revolutionary Court reportedly sentenced blogger and physician Ali Asghar Jamali, to three years' imprisonment for insulting the supreme leader and antiregime propaganda. Jamali, who defends workers' rights, wrote a blog called Dr. Social-Democrat. According to cyberdissidents.org, at year's end he remained in jail.

At year's end Mohammad Nourizad, originally arrested in December 2009, remained in Evin Prison serving a three-year sentence (see section 1.c.).

There was no evidence of any government investigation into the March 2009 death of 25-year-old blogger Omid Reza Mirsayafi in the medical ward of Evin Prison, reportedly due to an overdose of a medication he received from the prison clinic for depression. In 2008 a Tehran revolutionary court sentenced Mirsayafi to 30

months in prison for propaganda against the state and criticism of the supreme leader.

Internet journalist and cleric Mojtaba Lotfi continued to serve a four-year prison sentence imposed in 2008 for posting online a sermon by Grand Ayatollah Montazeri, a well-known opponent of Supreme Leader Khamenei, that criticized President Ahmadi-Nejad's claim that Iran was "the world's freest country." According to RSF, Lotfi suffered from lung problems stemming from Iran-Iraq war injuries.

In September a court sentenced well-known blogger and dual Iranian-Canadian citizen Hossein Derakhshan to 19 and one-half years in prison and a five-year ban from political or journalistic activities. At year's end he reportedly remained in Evin Prison pending appeal. Authorities arrested Derakhshan in 2008 while he was visiting the country and allegedly subjected him to psychological and physical abuse in detention, according to the NGO HRAI.

Blogger and women's rights activist Shahnaz Gholami was in asylum in France at year's end. On April 3, IHRV reported that Branch 2 of the Revolutionary Court in Tabriz sentenced her to eight years in prison for publishing articles considered devoid of truth, spreading propaganda against the regime, and alleged MEK membership. Gholami was arrested in 2008 for publishing "propaganda" and "jeopardizing national security."

There were no updates in the case of bloggers Omid Memarian, Roozbeh Mirebrahimi, Shahram Rafizadeh, and Javad Gholamtamimi, sentenced in February 2009 to prison terms of up to three years, fines, and flogging despite the judiciary head's admission that the bloggers' confessions were coerced. Memarian, Mirebrahimi, and Rafizadeh were sentenced in absentia as they remained abroad at year's end; Gholamtamimi continued to reside in the country during the year. The four were originally arrested in 2004.

Academic Freedom and Cultural Events

The government significantly restricted academic freedom and the independence of higher education institutions. Authorities systematically targeted university campuses to suppress social and political activism, including by banning independent student organizations, imprisoning student activists, purging faculty, depriving targeted students from enrolling or continuing their higher education based on political affiliation or activism (see section 3), and banning social

sciences and humanities curricula. Authorities continued to dismiss university professors in accordance with a 2006 presidential call for the removal of secular and liberal professors. To obtain tenure, professors had to refrain from criticism of authorities.

In August the director of the Office of Development of Higher Education announced that the government would begin restricting the number of students admitted to humanities programs at universities, and in October authorities placed restrictions on social sciences education, barring universities from opening new departments of law, philosophy, management, psychology, political science, women's studies, or human rights. The government also announced it would revise at least 70 percent of the existing social sciences curricula, and there were reports that the changes had begun at year's end.

Also in October the supreme leader declared the private financial endowment of Azad University was religiously illegitimate, leading the way for a potential government takeover. Azad University, supported by former President Rafsanjani, has hundreds of branches in Iran and several outside the country. Azad University's main branch in Tehran was a major site for the June 2009 election protests.

According to AI, in October 2009 authorities banned from teaching five prominent law professors from Alameh Tabatabai University's law school. Local news reports noted that the professors taught human rights courses at the university.

The government censored cultural events with stringent controls on cinema and theater and a ban on some foreign music. On June 1, the government announced a ban on music education in private schools, already banned in public schools, and on August 3, media reported that the supreme leader advised against the practice and teaching of music in general, although music continued in the media at year's end. The government monitored cultural associations and continued to crack down on underground music groups, especially those it considered inspired by Satan, such as heavy metal or similar foreign music. Authorities banned broadcasting of certain singers' music and certain songs from government-owned radio stations for unspecified reasons.

Throughout the year there were reports that security forces raided recording studios and underground concerts. In May police raided an underground concert outside of Tehran and arrested 80 individuals for being improperly dressed and for drinking alcohol. In November Tehran police reportedly arrested male and female members of an underground rap group for "immoral" and "un-Islamic" behavior and for

drinking alcohol. There was no information at year's end about the status or whereabouts of those arrested in either case.

On July 21, President Ahmadinejad established the High Council for Cinema to conduct the country's cinema policy, and the group reportedly held its first meeting on December 30. As the main source of production funding, the government effectively censored domestic filmmaking. Producers were required to submit scripts and film proposals to government officials in advance of funding approval. Movies promoting secularism, feminism, unethical behavior, drug abuse, violence, or alcoholism were illegal, and some domestic directors were blacklisted.

On March 1, plainclothes police officers raided the home of award-winning film director Jafar Panahi and arrested him along with his wife and daughter, film director Mohammad Rasulov, and 15 other individuals, most of whom were released a few days later. According to some sources, Panahi and Rasulov were working together to make a documentary about the 2009 postelection protests. On December 20, a court convicted Panahi and Rasulov with participating in a gathering and making propaganda against the regime and sentenced them both to six years in prison, and Panahi also to a 20-year ban from making films, writing scripts, giving interviews, and traveling abroad. At year's end both filmmakers remained free pending the outcome of their appeals. Most of Panahi's films are banned in the country.

In September Culture Minister Sayyed Mohammad Hosseini publicly criticized the country's annual film festival for supporting the Green Movement. The Ministry later revoked the production license for Asghar Farhadi's film *Separation of Nader and Simin*. Farhadi was permitted to resume production in October.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The constitution permits assemblies and marches "provided they do not violate the principles of Islam"; in practice the government restricted freedom of assembly and closely monitored gatherings to prevent antigovernment protests. Such gatherings included public entertainment and lectures, student meetings and protests, labor protests, women's gatherings and protests, funeral processions, and Friday prayer gatherings. According to activists, the government arbitrarily applied rules governing permits to assemble, with conservative groups rarely experiencing difficulty and groups viewed as critical of the government experiencing harassment

regardless of whether a permit was issued. During the year authorities arrested, tried, and imprisoned individuals who participated in demonstrations since 2006.

The government continued to prohibit and forcibly disperse peaceful demonstrations during the year. Paramilitary organizations such as Ansar-e Hizballah also harassed, beat, and intimidated those who demonstrated publicly for reform. They particularly targeted university students.

According to a February ICHRI release, authorities collected photographs of expatriate citizens in protest gatherings outside the country. When those citizens entered or left the country via Imam Khomeini International Airport in Tehran, security officials temporarily detained them for questioning.

On December 7, students held peaceful demonstrations at various universities in the country, including Qazvin Azad University, Tehran Polytechnic University, Gilan University, and the Tehran School of Art, to protest the restrictions on humanities studies (see section 2.a., Academic Freedom and Cultural Events), as well as the imprisonment of students. Paramilitary Basij forces responded by breaking up gatherings and detaining dozens of students.

In a global study released on February 5, the UN special rapporteur on torture stated that the June 2009 election protests "were met with excessive violence by the police and government militias." He said he received "credible allegations" of the killing of at least 12 students participating in the protests and pointed at agents of the Revolutionary Guards, paramilitary Basij, and State Security Force as employing "extreme force to suppress protesters by opening fire during demonstrations and using pepper spray and batons to disperse demonstrations."

In September an appeals court rejected the appeal of Mohammad Tavakoli, charged with "gathering," "collusion against the regime," "propagating against the regime," and "insulting the supreme leader and the president." At year's end he was serving his eight and one-half-year prison term in Ward 3 of Gohardasht Prison in Karaj. The ICHRI reported that he had no access to his lawyer during his imprisonment or trial. In February 2009 authorities arrested approximately 20 participants in a ceremony commemorating the life of Mehdi Bazargan, the first prime minister appointed after the 1979 revolution. The group included Tavakoli and at least three other men from Tehran Polytechnic (Amir Kabir) University's Islamic Students Association--Esmail Salmanpour, Hossein Torkashvand, and Koroush Daneshyar--who reportedly were detained in Ward 209 of Evin Prison. All the detainees except Tavakoli were believed to be free at year's end. On

December 5, prior to Student Day, authorities arrested Esmail Salmanpour and held him for two weeks.

In February 2009 more than 1,500 Amir Kabir University students demonstrated against the government's plan to rebury soldiers from the Iran-Iraq War on university grounds. According to AI, security forces arrested four Amir Kabir University students, Abbas Hakimzadeh, Mehdi Mashayekhi, Nariman Mostafavi, and Ahmad Qasaban, along with 70 other students during the demonstrations. Authorities later released 40 of the students. There was no information regarding the status of the remaining detained students at year's end.

Freedom of Association

The constitution provides for the establishment of political parties, professional associations, Islamic religious groups, and organizations for recognized religious minorities, as long as such groups do not violate the principles of "freedom, sovereignty, and national unity" or question Islam as the basis of the Islamic Republic. The government limited freedom of association in practice through threats, intimidation, imposing arbitrary requirements on organizations, and arresting group leaders and members. According to a January 2009 HRW report, under the Ahmadi-Nejad administration, municipal, provincial, and national councils--established by 2005 regulations ostensibly to facilitate NGOs' permit process--instead served to suppress NGO activities. Such councils generally denied NGOs' applications without written explanation, especially in minority regions, where those who successfully obtained permits nevertheless faced harassment (see section 6, National/Ethnic/Racial Minorities).

In November according to the *Wall Street Journal*, plainclothes agents without warrants arrested four of the five new central committee members of the Office for Fostering Student Unity (Tahkim-e Vahdat), a politically active student group, immediately after the group's elections were held. The group said the government pressured it not to hold the elections. Authorities released Ali Qolizadeh, Alireza Kiani, and Mohamad Heydarzadeh by early December, but as of December 7, Mohsen Barzegar remained in Evin Prison without access to family or a lawyer. The Ministry of Science, Technology, and Research declared Tahkim-e Vahdat illegal in 2009. On October 31, Raja News, a Persian-language Web site HRW believes is affiliated with the Intelligence Ministry, ran an article accusing several Tahkim-e Vahdat members of having ties with the MEK. Tahkim-e Vahdat rejected these allegations.

Throughout the year the government reportedly continued to exert significant pressure on the DHRC, a Tehran NGO headed by Nobel Peace Prize laureate Shirin Ebadi (see section 5).

The journalists' union and other labor-related groups also continued to face problems during the year (see section 7).

c. Freedom of Religion

For a complete description of religious freedom, please see the 2010 *International Religious Freedom Report* at www.state.gov/g/drl/irf/rpt/.

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The constitution provides for freedom of movement within the country, foreign travel, and emigration, and repatriation. The government placed some restrictions on these rights. The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) with regard to refugees from Afghanistan and Iraq.

The government required exit permits for foreign travel for all citizens. Some citizens, particularly those whose skills were in demand and who were educated at government expense, had to post bond to obtain an exit permit. The government also restricted foreign travel of some religious leaders and individual members of religious minorities and scientists in sensitive fields, and it increasingly targeted journalists, academics, opposition politicians, and activists--including women's rights activists--for travel bans and passport confiscation during the year. The government banned travel to Israel, but this ban was reportedly not enforced.

There were no updates on the travel bans on prominent attorney Naser Zarafshan, academic Mehdi Zakerian, DHRC deputy Narges Mohammadi, and peace activist Sorayra Azizpanaha.

In March, Simin Behbehani, a renowned Iranian poet, was barred from boarding a flight to France. Authorities questioned her and confiscated her passport. At year's end, authorities continued to bar her from leaving the country.

On December 20, a court sentenced filmmaker Jafar Panahi, who was restricted from travel in October 2009, to six years in prison (see section 2.a., Academic Freedom and Cultural Events).

A woman must have the permission of her husband, father, or other male relative to obtain a passport. A married woman must receive written permission from her husband before she leaves the country.

The government did not use forced external exile, but it used internal exile as a punishment. Many dissidents practiced self-imposed exile to be able to express their beliefs freely.

There were indications that members of all religious minorities were emigrating at a high rate, although it was unclear whether the reasons for emigration were religious or economic.

Protection of Refugees

The country's laws provide means for granting asylum or refugee status to qualified applicants, and the government reportedly had a system for providing protection to refugees, but the UNHCR did not have any information as to how the country made asylum determinations. The government did not consistently provide protection against the expulsion or return of refugees to countries where their lives or freedom would be threatened on account of their race, religion, nationality, membership in a particular social group, or political opinion. Unlike in the previous years, there were no reports of registered refugees included in mass deportations.

As of March, according to information provided by the country's Bureau for Aliens and Foreign Immigrants' Affairs, 1,065,000 refugees were registered with the authorities, of whom approximately 1,021,600 were Afghans and 43,800 were Iraqis. Approximately 70 percent of the Afghan refugees and their children had lived in the country for 20 to 30 years. There were 3,590 Iraqis registered with the UNHCR at year's end. The UNHCR assisted with the voluntary repatriation of Afghan refugees under a tripartite agreement between the Islamic Republic of Iran, Afghanistan, and the UNHCR, which came back into force on June 28 after three years of suspension.

Twenty-two of 30 provinces were partially or fully closed to refugees; therefore, authorities generally required registered Afghan refugees in these "No-Go Areas"

to choose either to relocate to refugee settlements, sometimes in other parts of the country, or to repatriate. However, the UNHCR noted that some of these refugee settlements needed rehabilitation. The limited number of resettlement locations is a major constraint for the UNHCR to assist refugees with relocation within the country. Of the 7,922 Afghans who repatriated from January 1 to November 7, the vast majority said they were under pressure to return due to the government's No-Go Areas policy.

According to the UNHCR, the government's reregistration campaign launched in 2008 to assist male refugees to obtain work permits enabled more refugees to work in the country. The law allows only male refugees to work, but UNHCR has in the past provided limited assistance to female refugees.

In July 2009 according to the UNHCR, the government announced a policy to treat the enrollment of all school-age children, including lawful foreign residents and registered refugees, in the same manner. However, at year's end there was no information available about how the new policy was enforced. According to 2009 reports, more than a quarter of primary-school-aged refugees were not enrolled in school. The U.S. Committee for Refugees and Immigrants reported in 2008 that Afghan refugee children were charged fees to attend school, while Iraqi refugee children were able attend public school for free. In some cases, local government officials reportedly suspended education services for refugees to encourage them to repatriate.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The constitution provides citizens the right to peacefully change the president and the parliament through free and fair elections, but the authority of unelected representatives over the election process severely abridged this right in practice. The Assembly of Experts elects the supreme leader, the recognized head of state, who may be removed only by a vote of the assembly. The supreme leader exercises influence over the government appointments of the 12 clerics and religious jurists who make up the Guardian Council. The Guardian Council then approves the list of candidates for the Assembly of Experts, whose 86 members must also be clerics, who serve eight-year terms and are chosen by popular vote. There was no separation of state and religion, and clerical influence pervaded the government. The supreme leader also approved presidential candidates.

Elections and Political Participation

In June 2009 the country held its 10th presidential election, which outside observers regarded as neither free nor fair. International observers were not allowed entry to monitor the election results. The Guardian Council approved only four candidates out of more than 450 prospective candidates, including 42 women and former officials. No women were approved to run as candidates. Authorities increased censorship and surveillance during the campaign, blocking cell phone signals and access to social networking and opposition Web sites. The government also reportedly harassed and arbitrarily arrested political activists, members of the country's religious and ethnic minority communities, students, trade unionists, and women's rights activists during the preelection period.

For example, in April 2009 authorities detained Mehdi Mo'tamedi Mehr, a member of the Committee to Defend Free, Healthy, and Fair Elections and the banned political organization the Freedom Movement of Iran, after the committee published a statement about civil society institutions as election observers. In December 2009 according to local press reports, the MOIS summoned Mehr and other members of the Freedom Movement, and at year's end they remained in detention.

In May 2009 authorities detained Emad Bahavar, also a member of the Freedom Movement, for "spreading propaganda against the system" by campaigning for presidential candidate Mousavi. According to IHRV, he was released 96 hours later. He was detained again in June 2009 and was released after 46 days in solitary confinement. Nine months later on March 7, Bahavar defended himself at a trial for his June 2009 detention and was immediately arrested. On November 29, Bahavar was convicted of "assembly and collusion to act against national security," "propagating against the regime," and "insulting the leader." He was sentenced to a 10-year prison term and a 10-year ban on any political activity. At year's end he remained in Evin Prison.

Anecdotal evidence suggested that authorities forced some election observers representing opposition candidates to leave polling stations and that millions of unused paper ballots went missing. Before all polls closed and ballot counting had commenced, government-controlled media announced that President Ahmadi-Nejad had been reelected in the first round of elections, obtaining a majority of the votes. Contrary to the election law, Supreme Leader Ayatollah Khamenei approved the election results before the Guardian Council certified the election and before the Interior Ministry announced the final results. Independent analysts studied election data and concluded there were a number of irregularities, including at least

two provinces showing a turnout of more than 100 percent and the absence of longstanding regional variations in turnout, which appeared abnormal despite regulations that allow Iranians to vote at any polling station. According to official government data, President Ahmadi-Nejad took not only all former conservative voters, all former centrist voters, and all new voters, but also up to 44 percent of former reformist voters, a scenario analysts questioned.

The constitution allows for the formation of political parties, although the Interior Ministry granted licenses only to parties with ideological and practical adherence to the system of government embodied in the constitution. There were more than 240 registered political organizations that generally operated without restriction or outside interference, but most were small entities, often focused around an individual, and did not have nationwide membership. Members of political parties and individuals with any political affiliation that the government deemed unacceptable faced harassment, violence, and sometimes imprisonment.

In 2009 both former presidential candidates experienced raids on their homes and offices. Specifically, in early September militants believed to be connected to the government repeatedly targeted the home of former presidential candidate Mehdi Karroubi in consecutive evening attacks. On September 16, security forces raided the office of former presidential candidate Mir Hossein Mousavi.

In March Minister of Science, Research, and Technology Kamrn Daneshjoo said that only those who have proven commitment to Islam and the "rule of the jurisprudent" (velayat-e-faghih) can teach or study at universities, and during the year the government continued to dismiss professors and ban students from higher education institutions based on their political affiliations or actions. According to the ICHRI, university officials dismissed or forced the retirement of at least 50 university faculty members during the year for their affiliation or support of the Green Movement. For example, in August the Ministry of Science suddenly dismissed Yousef Sobouti, head of the Institute for Advanced Studies in Basic Sciences in Zanzan Province, allegedly for political reasons, and replaced him with a scientist reportedly known to have links with the Basij militia. Following calls for an investigation into the dismissals and retirements, various members of the parliament called for a review; however, at year's end, no formal investigation had been launched.

The two leading reformist political parties, Islamic Iran Participation Front and the Islamic Revolution Mujahedin Organization, were banned in September.

Admission to universities was politicized; in addition to standardized examinations, all applicants had to pass "character tests" in which officials eliminated applicants critical of the government's ideology. According to a December ICHRI report, there were at least 70 such cases during the year. Basij members were given advantages in the admissions process. During the previous three years, according to the ICHRI, government interference with university admissions considerably increased.

Authorities relied on university disciplinary committees to suspend, transfer, or expel enrolled students based on social and political activism, involvement in student publications, or participation in student associations. Student groups reported that a "star" system inaugurated by the government in 2005 to rank politically active students was still in use. Students deemed antigovernment through this system reportedly were prevented from registering for upcoming terms. Repeated suspensions through this mechanism resulted in effectively denying the rights of targeted students to complete and continue their studies.

During the year Ministry of Intelligence agents used threats, intimidation, and arrests to silence students who attempted to seek accountability and legal justification for their deprivation from higher education.

For instance, during the year a disciplinary committee at Qazvin International University expelled Payam Heydar Ghazvini, who was in the last term of his theology and law studies, and banned him from any university for three years. Ghazvini was the head student campaigner for opposition presidential candidate Mehdi Karroubi in Qazvin Province.

Also during the year the Central Disciplinary Committee expelled Kazem Rezaee from Shiraz University, where he was studying mechanical engineering. Rezaee was editor in chief of the student publication *Farvardin* and was arrested four times for his student activism between 2007 and 2009.

In November the Ministry of Science confirmed the expulsion of Kaveh Daneshvar from Babol's Noshirvani Industrial University. Daneshvar went on a hunger strike in 2009 to protest the arrests of Babol University's student activists during the postelection events.

According to the Guardian Council's interpretation, the constitution barred women and persons of non-Iranian origin or religions other than Shia Islam from becoming president. Women were also barred from serving as supreme leader; as members of

the Assembly of Experts, Guardian Council, or Expediency Council (a body responsible for mediating between the Majles and the Guardian Council and serving as a consultative council for the supreme leader); and as certain types of judges (see section 6, Women). On December 20, President Ahmadi-Nejad appointed Farahnaz Torkestani to a vicepresidential cabinet post as head of the National Youth Organization. Women also served as the vice presidents of legal affairs and science and technology and as the health minister. Twelve women served in the Majles during the year.

Five Majles seats were reserved for recognized religious minorities. Other ethnic minorities in the Majles included Arabs and Kurds. There were no non-Muslims in the cabinet or on the Supreme Court.

Section 4 Official Corruption and Government Transparency

The law provides criminal penalties for official corruption, but the government did not implement the law effectively, and official corruption and impunity remained a serious and ubiquitous problem in all three branches of government. In a September interview with state media, former prosecutor general Ayatollah Abdolnabi Namazi alleged that judiciary officials were under pressure not to pursue corruption charges against cases referred to the Committee to Fight Economic Corruption. Many officials expected bribes for providing even routine service. Individuals routinely bribed officials in order to obtain permits for illegal construction.

According to a May report by the Foundation for Defense of Democracies' Iran Energy Project, the supreme leader continued to transfer a large portion of the country's commerce, industry, oil and gas, and services sectors to the IRGC. In recent years the government gave control over state enterprises to the IRGC through the granting of special privileges. IRGC companies were large enough to underbid competitors and were generally favored in the bidding process for large contracts. In October the IRGC was awarded a road-building contract of 15 trillion toman (\$15 billion), the largest in the country's history. According to the report, the IRGC does not answer to either the executive or legislative branches with regard to its economic activities and does not publish any records or reports about its revenues. Under a 1993 decree, all of the IRGC's economic activities are exempt from taxation. The IRGC is also widely considered to control the vast majority of the underground and black market economy. Up to 80 percent of illegal goods enter the country through unregistered ports and jetties controlled by the IRGC.

According to Freedom House, the hardline clerical establishment also grew wealthy through its control of bonyads, tax-exempt foundations that monopolize many sectors of the economy such as cement and sugar production. Bonyads receive benefits from the government but are not required to have their budgets publicly approved.

All government officials, including cabinet ministers and members of the Guardian Council, Expediency Council, and Assembly of Experts, were required to submit annual financial statements to the state inspectorate. There was no information available regarding whether these officials obeyed the law.

Numerous government agencies existed to fight corruption, including the Anticorruption Headquarters, the Anticorruption Task Force, the Committee to Fight Economic Corruption, and the General Inspection Organization.

In late January according to media reports, intelligence agents arrested 15 individuals in Karaj, including the mayor and three city council members, under embezzlement charges. The cases of the detained were forwarded to the Karaj public prosecutor, but there was no further information regarding the case at year's end.

On December 20, the judiciary announced that First Vice President Mohammad Reza Rahimi would face corruption charges. In April members of parliament had publicly accused Rahimi of corruption. Rahimi denied the charges. At year's end there were no updates about the status of the charges, and Rahimi remained in his position.

There were no developments related to the February 2009 National Audit Office report that revealed that the Oil Ministry had not returned 1.2 trillion toman (\$1.2 billion) in oil revenues to the treasury or to the November 2009 parliamentary commission's criticism of the government's recent privatization efforts, which concluded that the government essentially gave the national telecommunications company to the IRGC.

There were no laws providing for public access to government information.

Section 5 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The government continued to restrict the work of human rights groups and activists and sometimes responded to their inquiries and reports with harassment, arrests, monitoring, unlawful raids, and closures (see also sections 1.d., 1.e., 2.a., 6, and 7). The government continued to deny the universality of human rights and stated that human rights issues should be viewed in the context of a country's "culture and beliefs."

Hundreds of domestic NGOs focused on issues such as health and population, women's rights, development, youth, environmental protection, human rights, and sustainable development, despite the restrictive environment, including pressure not to accept foreign grants. NGOs must register with the Interior Ministry and apply for permission to receive foreign grants. According to various sources, independent human rights groups and other NGOs faced intensifying harassment and threat of closure from government officials as a result of prolonged and often arbitrary delays in obtaining official registration.

During the year the government prevented human rights defenders, civil society activists, journalists, and scholars from traveling abroad (see section 2.d.). Human rights activists reported receiving intimidating phone calls and threats of blackmail from unidentified law enforcement and government officials. Government officials routinely harassed and sometimes arrested family members of human rights activists (see section 1.f.). Courts routinely applied suspended sentences to human rights activists; this form of sentencing acted as de facto probation, leaving open the option for authorities to suddenly and arbitrarily arrest or imprison individuals. This threat was sometimes enough to silence activists or pressure them into providing information about other activists.

Professional groups representing writers, journalists, photographers, and others attempted to monitor government restrictions in their respective fields, as well as harassment and intimidation against individual members of their professions. The government severely curtailed these groups' ability to meet, organize, or effect change.

In June according to the ICHRI, a government intelligence official traveled with the NGO delegation to the UN Human Rights Council's Universal Periodic Review (UPR) of the country and reviewed statements made by the NGOs.

Throughout the year the government reportedly continued to exert significant pressure on the DHRC, a Tehran NGO headed by Nobel Peace Prize laureate Shirin Ebadi, and it systematically harassed and arrested lawyers affiliated with the

organization. On October 30, Branch 15 of the Revolutionary Court sentenced Mohammad Seifzadeh, a lawyer and one of DHRC's founders, to nine years in prison and a 10-year ban on practicing law for "acting against national security" by establishing the DHRC. Seifzadeh told the ICHRI that his trial occurred behind closed doors.

In 2009 a Basij-student mob attacked Ebadi's offices and home, and the government pressured at least two of the DHRC's employees to resign; prevented several DHRC members from traveling outside the country; arrested and detained a DHRC secretary for 55 days; regularly summoned DHRC members for interrogation; and warned individuals not to attend the DHRC's gatherings, some of which police dispersed. On January 12, authorities released Ebadi's sister, Nushin, a professor of dentistry, after 17 days in detention. Nooshin reportedly also faced threats of dismissal from her university job.

Despite numerous appeals, including from the UN, the government denied requests from international human rights NGOs to establish offices in, or conduct regular investigative visits to, the country. The last visit by an international human rights NGO was AI's 2004 visit as part of the EU's human rights dialogue with the country.

The International Committee of the Red Cross and the UNHCR both operated in the country with some restrictions. Since the government issued a standing invitation to all UN human rights agencies in 2002, there have been six visits to the country by UN special human rights institutions, but none since 2005. The government generally ignored recommendations these bodies made and failed to submit required reports to the UN Human Rights Committee or the UN Committee on Economic, Social, and Cultural Rights. The government ignored repeated requests for visits by UN special rapporteurs.

A February 5 global study by the UN special rapporteur on torture and other similar practices stated that there were "credible" allegations that the country's security forces used excessive force against peaceful demonstrators and committed politically motivated torture following demonstrations.

In a March 11 interview with Radio Free Europe (RFE), then UN special rapporteur on torture Manfred Nowak said he was "really concerned about the situation" in the country, including allegations of torture in prisons following the 2009 elections, but that the government would not permit him to visit and investigate the claims.

In June the UN Human Rights Council reviewed the country's human rights record as part of the UPR process. The government rejected 45 of the 189 UPR recommendations, including concerns over torture, the lack of due process, and independence of civil society. Mohammed Javad Larijani, chief of the country's High Council for Human Rights, said human rights activists were "inciting violence."

On October 29, for the eighth consecutive year, the UN General Assembly adopted a resolution expressing concern about the country's "serious ongoing and recurring human rights violations." High Council for Human Rights head Larijani said the resolution was "illegal" and was designed to undermine "constructive interaction between [his government] and the UN Human Rights Council."

The governmental High Council for Human Rights has not conducted formal investigations into post-election abuses. Larijani, the council's head, is the brother of Ali Larijani, speaker of the parliament, and Sadeq Larijani, head of the judiciary.

Section 6 Discrimination, Societal Abuses, and Trafficking in Persons

Although the constitution formally prohibits discrimination based on race, gender, disability, language, and social status "in conformity with Islamic criteria," the government did not effectively enforce these prohibitions.

Women

Rape is illegal and subject to strict penalties including the death penalty, but it remained a problem. There were reports of government forces raping individuals in custody (see sections 1.a., 1.c., and others). Spousal rape is not illegal. Cases of rape were difficult to document due to social stigma against the victims. Most rape victims did not report the crime to authorities because they feared societal reprisal such as ostracism or punishment for having been raped. According to the penal code, rape is a capital offense, and four male witnesses or a combination of three male and two female witnesses are required for conviction. A woman or man found making a false accusation of rape is subject to 80 lashes.

The law does not specifically prohibit domestic violence. Spousal abuse and violence against women occurred. According to a study published in 2008 using 2005 data, 52.7 percent of women reported being physically abused during their

married lives. A study published in 2009 using data from 2006 reported that half of the secondary students interviewed had witnessed spousal abuse in their families. A survey of women with infertility from August 2009 to January 2010 revealed that approximately 62 percent had experienced domestic abuse because of their infertility. Most women said their abuse was psychological; 22 percent of women had experienced physical or sexual abuse because of infertility. Abuse in the family was considered a private matter and seldom discussed publicly, although there were some efforts to change this attitude, particularly by the "One Million Signatures for the Repeal of Discriminatory Laws" (also known as OMSC and "Change for Equality") campaign. Some nongovernmental shelters and hotlines assisted victims during the year.

There is no law prohibiting "honor" killings, although no cases were documented during the year. The law permits a man to kill his adulterous wife and her consorts if he is certain she consented. Women convicted of adultery may also be sentenced to death, including by stoning. According to a police official quoted in a domestic newspaper in 2008, 50 honor killings were reported during a seven-month period, although official statistics were not available. The punishment for perpetrators was often a short prison sentence.

There was no update on the February 2009 case where a father killed his 16-year-old daughter for suspicious activity; the 2008 cases of a man known as Ahmad, who allegedly killed his daughter after her former brother-in-law kidnapped and slept with her; or Morteza, who allegedly killed his sister after she married a man without her family's permission.

There was a lack of reliable data on the prevalence of sexual harassment in the country. Media reports indicated that unwanted physical contact and verbal harassment occurred. Government officials, however, often blamed women's sexuality for problems in society; for example, on April 16, cleric Kazem Sadighi said, "many of the ladies who do not have a proper appearance cause the hearts of the youth to be swayed and they become defiled by sin, and this leads to the spread of adultery in society, which increases earthquakes." There are laws addressing sexual harassment in the context of physical contact between men and women. Physical contact between unrelated men and women is strictly prohibited and is punishable by lashing.

The 1993 family planning law recognizes the basic right of married couples to decide freely and responsibly the spacing and timing of their first three children and have the information and means to do so free from discrimination, coercion,

and violence. According to the law, health and maternity benefits are cut for the family after three children. Local clinics and rural health centers disseminated information on family planning under the guidance of the Ministry of Health and Medical Education. There were no restrictions on the right of married persons to access contraceptives. According to the Population Reference Bureau, nearly 80 percent of married women of reproductive age used family planning methods, 75 percent of whom used modern methods of contraception. Couples who plan to marry must take a class in family planning. According to the UN Children's Fund (UNICEF), the 2008 adjusted maternal mortality ratio was 30 per 100,000 live births. According to UNICEF, 97 percent of women gave birth with a skilled attendant present. Men and women received equal access to diagnosis and treatment of sexually transmitted infections, including HIV. However, women tested less regularly than men because of social stigmas attached to doing so.

The constitution nominally provides women with equal protection under the law and all human, political, economic, social, and cultural rights in conformity with Islam. Provisions in the Islamic civil and penal codes, particularly sections dealing with family and property law, discriminate against women. Shortly after the 1979 revolution, the government replaced those laws that provided women with increased rights in the home and workplace with a legal system based largely on Shari'a practices. In March 2009 President Ahmadi-Nejad instructed the relevant bodies to implement a law in which women's share of their husband's inheritance would increase to one-fourth from the previously stipulated one-eighth of his property. At year's end there was no information on the law's implementation. The governmental Center for Women and Family continued to publish reports on feminism with a negative slant and limited the debate on women's issues to matters related to the home. Women cannot directly transmit citizenship to their children or to a non-Iranian spouse (see section 6, Children).

Although a man (or boy) can marry at age 15 without parental consent, the law states that a virgin woman or girl needs the consent of her father or grandfather to wed, or the court's permission, even if she is older than 18. The country's Islamic law permits a man to have as many as four wives and an unlimited number of *sigheh*, based on a Shia custom in which a woman may become the wife of a Muslim man after a simple religious ceremony and a civil contract outlining the union's conditions. *Sigheh* wives and any resulting children were not granted rights associated with traditional marriage. The government does not recognize marriages between Muslim women and non-Muslim men or Baha'i marriages.

A woman has the right to divorce only if her husband signs a contract granting that right, cannot provide for his family, or is a drug addict, insane, or impotent. A husband was not required to cite a reason for divorcing his wife. Traditional interpretations of Islamic law recognized a divorced woman's right to part of shared property and to alimony. These laws were not enforced. According to a study by the National Organization for Civil Registration, quoted in a book by a women's rights activist, more than 89 percent of women did not receive their due alimony, and 9 percent did not receive their share of the wedding gift (wedding contracts traditionally stipulate that in case of divorce the groom give his bride the wedding gift for financial support). The law provides divorced women preference in custody for children up to age seven; divorced women who remarry are forced to give the child's father custody. After the child reaches age seven, the father is entitled to custody (unless the father has been proven unfit to care for the child). The court determines custody in disputed cases.

Women sometimes received disproportionate punishment for crimes such as adultery, including death sentences (see sections 1.a. and 1.e., Trial Procedures). The testimony of two women is equal to that of one man. The blood money paid to the family of a female crime victim is half the sum paid for a man.

Women had access to primary and advanced education, and approximately 65 percent of university students were women. Government officials acknowledged the use of quotas to limit women's university admissions in certain fields such as medicine and engineering. In addition social and legal constraints limited women's professional opportunities. Women were represented in many fields, including the legislature, municipal councils, police, and firefighters, but a woman must seek her husband's consent before working outside the home. According to a 2009 World Economic Forum report, the unemployment rate for women, who constituted 33 percent of the workforce, was 15.8 percent, compared with 9.3 percent for men. Cultural discrimination remained a factor; one member of parliament suggested that banning women from the workplace could solve the country's unemployment problems. Women cannot serve in many high-level political positions or as judges, except as consultant or research judges without the power to impose sentences.

On November 17, Khadijeh Azadpour, who won a gold medal in martial arts at the Asian Games, told the local press that authorities told her she would only receive a promised apartment if she were married. Previously, she said she was promised an apartment if she won a gold medal.

The government enforced gender segregation in most public spaces, including for patients during medical care, and prohibited women from mixing openly with unmarried men or men not related to them. Women must ride in a reserved section on public buses and enter public buildings, universities, and airports through separate entrances. The penal code provides that a woman who appears in public without an appropriate hijab can be sentenced to lashings and fined. However, absent a clear legal definition of "appropriate hijab" or the punishment, women were subject to the opinions of disciplinary forces or judges. Pictures of uncovered or immodestly dressed women in the media or in films were often digitally altered.

In August a controversial family law that would make polygamy more permissive was reintroduced to the parliament. Women's groups successfully lobbied to table the bill in 2008; the bill would allow men to take additional wives without the first wife's permission, tax women's dowries, and remove conditions for the registration of temporary marriages.

The government continued its intense crackdown against members of the OMSC, which activists launched in 2006 to promote women's rights, particularly by advocating reform of discriminatory laws. Several members of the OMSC remained under suspended prison sentences and travel bans, were in prison, or were in self-imposed exile at year's end.

On March 2, authorities rearrested Mahoubeh Karami and searched her house. IRGC officials took her to Evin Prison where according to the ICHRI she remained for 80 days. She reportedly suffered abuse during interrogation, including being hit on the head with a water bottle. According to her brother, her charges stemmed from her membership in OMSC and her support for the DHRC. On August 18, according to press reports, a court sentenced her to four years' imprisonment for membership in a prohibited organization and spreading of propaganda against the state, but at year's end she was free on bail of 500 million toman (\$500,000).

In March according to the Human Rights House of Iran, the Branch 15 of the Revolutionary Court acquitted Khadijeh Moghaddam on two counts of propaganda activity against the regime and disobeying police orders but sentenced her to a one-year suspended prison term for assembly and conspiracy with intent to act against national security.

In March 2009 security forces detained Moghaddam for approximately one month along with 11 other members from OMSC and the NGO Mothers for Peace-- Delaram Ali, Leila Nazari, Farkhondeh Ehtesabian, Mahboubeh Karami, Bahara

Behravan, Ali Abdi, Amir Rashidi, Mohammad Shoorab, Arash Nasiri Eghbali, Soraya Yousefi and Shahla Forouzanfar--as the group met to make traditional Nowruz (New Year) visits to families of several political prisoners. The ICHR suggested that security and intelligence forces must have eavesdropped on activists' private communications to apprehend them. Judge Matin Rasekh charged the 12 with "disturbing public opinion" and "disrupting public order," and they were transferred to Section 209 of Evin Prison under MOIS control. All 12 were released on bail in June 2009.

On December 5, local news reported that authorities arrested Hakimeh Shokri at at Behesht Zahara Cemetery along with several other mothers who were celebrating the birthday anniversary of Amir Arshad Tajmir, one of the protesters killed during the 2009 Ashura protest. They were gathered at Behesht Zahra Cemetery and were arrested. At year's end Hakimeh was transferred to Evin Prison and charged with "espionage" and "acting against national security"; the other women were released.

There were no developments in the case of Maryam Malek, detained for several weeks in April 2009 and charged with "propaganda against the system" in connection with her OMSC membership.

On December 29, authorities summoned Maryam Bidogli and Fatemeh Masjedi to report to prison to serve their one-year sentences for membership in a feminist organization. In May 2009 authorities in Qom arrested the OMSC members, along with the male author of *The Women's Movement in the East*, Gholamreza Salami. Intelligence agents searched homes of both women and took personal belongings. According to news reports, the women had previously been investigating an honor killing.

In January and February, authorities released the activists reportedly arrested in December 2009, including Zohre Tonkaboni and Mahin Fahimi, members of Mothers for Peace; and OMSC members Atiey Youseffi, Somayeh Rashidi, and Mansourreh Shojaaei. There were no other updates available in any cases related to these women.

There were no developments reported in the case of Mehri Moshrefi, sentenced in January 2009 along with her husband to a two-year suspended sentence. In 2008 authorities arrested Moshrefi, her husband, and two of her children at a cemetery where One Million Signatures was staging a protest and transferred them to Evin Prison despite activists' claims that the family was not involved in the gathering.

As of July Ronek Safazadeh remained in Sanadaj Prison. In April 2009 a court sentenced her to six years in prison for spreading propaganda about the government in relation to her distribution of One Million Signatures pamphlets in 2007 and membership in the armed opposition group Free Life Party of Kurdistan, with which her lawyer maintained she was only marginally involved.

Children

Citizenship is derived by descent when a child is born to a citizen father regardless of the child's country of birth. In general birth within the country's borders does not confer citizenship, except when a child is born to unknown parents; when both parents are noncitizens, but at least one parent was born in the country; or when a child born to noncitizens continues to reside in the country for at least one year after age 18. The birth registration law requires that all births be registered within 15 days. The responsibility for implementing birth registration law falls to the Ministries of Justice, Interior, and Foreign Affairs. According to UNICEF, despite efforts to register rural births, 13 percent of births were not reported in 2005.

Although primary schooling up to age 11 is free and compulsory for all, media and other sources reported lower enrollment in rural areas for girls than for boys. More than 25 percent of refugee children of primary school age were not enrolled in school.

There was little information available to reflect how the government dealt with child abuse, including child labor. Abuse was largely regarded as a private family matter. In May the government announced that approximately 150,000 cases of child abuse had been recorded in the six months prior, and a prominent attorney added that the government did little to address the problem. According a 2005 study by the UN's Integrated Regional Information Network, child sexual abuse was rarely reported.

The law requires court approval for the marriage of girls younger than 13 and boys younger than 15, but it was reportedly not unusual in rural areas for parents to have their children marry before they became teenagers, often for economic reasons. The age of criminal responsibility for girls is nine years, while the law does not consider boys criminally responsible until age 15; thus, if a 12-year-old girl accuses a 14-year-old boy of rape, the 12-year-old girl would face any criminal penalties alone. Sex outside of marriage is illegal and is punishable by death, although media reported that the common punishment was imprisonment and lashing.

In November 2009 according to the Mehr news agency, the leader of the student Basij organization, Mohammad Saleh Jokar, announced that 6,000 Basij units would be created in the country's elementary schools. Jokar said the action aimed to expand and promote Basij and revolutionary ideals among young persons. He added that approximately 4.5 million students and 320,000 teachers were members of the Basij. An RFE report noted that the Basij also began a program to register baby girls for later training in the Basji Hossein Haj Mousaee Basij unit. The report also discussed "resource centers" being built at elementary schools to prepare children to join the units.

There were reportedly significant numbers of children working as street vendors in Tehran and other cities and not attending school. International media sources reported there were as many as 250,000 street children in the country.

International news reported on the plight of children of imprisoned mothers. According to State Prisons Organization regulations, children could stay in prison with their mothers until the age of three; according to a report by the Association for Defending Prisoners' Rights, children sometimes stayed through the age of six.

In March authorities reportedly released child and women's rights activist Maryam Zia, arrested in December 2009, on bail of 30 million toman (\$30,000) due to health concerns and, according to some press reports, a 13-day hunger strike. In September Branch 28 of the Revolutionary Court sentenced Zia to one year in prison for propaganda against the regime.

The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. For information on international parental child abduction, please see the Department of State's annual report on compliance at http://travel.state.gov/abduction/resources/congressreport/congressreport_4308.html, as well as country-specific information at http://travel.state.gov/abduction/country/country_3781.html.

Anti-Semitism

The government's anti-Israel stance, in particular the president's repeated speeches decrying the existence of Israel and calling for the destruction of its "Zionist regime," created a threatening atmosphere for the 25,000-person Jewish community. Government officials continued to make anti-Semitic statements, organize events during the year designed to deny the Holocaust, and sanction anti-

Semitic propaganda. The government also limited distribution of nonreligious Hebrew texts and required Jewish schools to remain open on Jewish Sabbath.

Trafficking in Persons

For information on trafficking in persons, please see the Department of State's annual *Trafficking in Persons Report* at www.state.gov/g/tip.

Persons with Disabilities

The law prohibits discrimination against persons with disabilities. The law also provides for state-funded vocational education for persons with disabilities, but according to domestic news reports, vocational centers were confined to urban areas and were unable to meet the needs of the entire population. Building accessibility for persons with disabilities remained a widespread problem. The Welfare Organization of Iran is the principal governmental agency charged with protecting the rights of persons with disabilities.

National/Racial/Ethnic Minorities

The constitution grants equal rights to all ethnic minorities and allows for minority languages to be used in the media and in schools; in practice minorities did not have equal rights, and the government consistently denied their right to use their language in school. The government disproportionately targeted minority groups, including Kurds, Arabs, Azeris, and Baluch, for arbitrary arrest, prolonged detention, and physical abuse. These groups reported political and economic discrimination, particularly in their access to economic aid, business licenses, university admissions, permission to publish books, and housing and land rights. The government blamed foreign entities, including a number of governments, for instigating some of the ethnic unrest.

In January 2009 HRW released a report documenting government persecution of the 4.5 million Kurds in the country, who have frequently campaigned for greater regional autonomy. The report documented the government's use of security laws, media laws, and other legislation to arrest and persecute Kurds solely for exercising their right to freedom of expression and association (see section 1.e., Political Prisoners and Detainees). According to the report, the government consistently banned Kurdish-language newspapers, journals, and books and punished publishers, journalists, and writers for opposing and criticizing government policies. Although the Kurdish language is not banned, schools did not

teach it. Authorities suppressed legitimate activities of Kurdish NGOs by denying registration permits or bringing spurious charges of security offenses against individuals working with such organizations. Kurds were not allowed to register certain names for their children in official registries.

IHRV reported that two Kurdish students who passed entrance exams for graduate school in 2009 were denied admission based on their ethnicity.

There were no developments in the case of Jebraeil Khosravi, sentenced in January 2009 to a 20-year prison term for membership in an illegal organization. At year's end he was believed to remain in Bandar-Abbas Prison.

In November authorities reportedly released Kurdish writer Abbass Jalilian, who goes by the name "AKO," upon completion of his 15-month sentence for espionage.

On May 9, the government executed by hanging Farrad Karmangar, fellow Kurdish activists Ali Heydarian and Farhad Vakili, and two other political prisoners at Evin Prison (see section 1.a.). Authorities originally arrested the three men in 2006 because of their human rights activism.

Foreign representatives of the Ahvazi Arabs of Khuzestan claimed their community of two to four million in the country's southwest encountered oppression and discrimination, including the lack of freedom to study and speak Arabic. Ahvazi and human rights groups alleged torture and mistreatment of Ahvazi Arab activists, including allegations that in September 2009 IRGC intelligence officers raped two female activists.

In October 2009 relatives of seven men sentenced to death for killing a clergy member in Ahvaz told local human rights organizations that authorities had tortured them to coerce confessions.

Ethnic Azeris comprised approximately one-quarter of the country's population, were well integrated into government and society, and included the supreme leader among their numbers. Nonetheless, Azeris complained that the government discriminated against them, banning the Azeri language in schools, harassing Azeri activists or organizers, and changing Azeri geographic names. Azeri groups also claimed a number of Azeri political prisoners had been jailed for advocating cultural and language rights for Azeris. The government charged several of them with "revolting against the Islamic state."

On April 2, approximately 10,000 Azeris demonstrated near Lake Urmia, located between the provinces of West Azerbaijan and East Azerbaijan, to protest the government's lack of attention to the drying out of the lake. The protesters also demanded the preservation of Azerbaijan's cultural heritage. Authorities arrested more than 100 demonstrators.

On May 25, intelligence officials arrested Akbar Azad, an Azeri author and journalist, at his home in Tehran. After his arrest, security forces searched his home and confiscated his computer, books, and personal property. At year's end he remained in detention.

On August 1, two to three thousand Azeris reportedly demonstrated for the right to be educated in Azeri Turkish and to condemn discrimination against their community. According to the RFE report, Basij militants broke up the demonstration and arrested at least 12 individuals.

On August 25, the brother of Azeri activist Youssef Soleiman reported that prison authorities abused his brother (see section 1.c.).

In May 2009 media sources reported that 16 ethnic Azeris were injured during clashes with police in the city of Tabriz and 15 demonstrators were arrested. Protests also took place in the town of Orumiyeh and in Tehran. The demonstrations commemorated riots of 2006 in Tabriz and other cities protesting a newspaper caricature depicting Azeris as cockroaches.

Local and international human rights groups alleged serious economic, legal, and cultural discrimination against the Baluch minority during the year. Baluch journalists and human rights activists faced arbitrary arrest, physical abuse, and unfair trials, often ending in execution. In 2008 authorities executed Baluch journalist and education activist Yaghoob Mirnehad in Zahedan for alleged membership in the militant group People's Resistance Movement of Iran (formerly Jundallah), which the government considers a terrorist group.

Societal Abuses, Discrimination, and Acts of Violence Based on Sexual Orientation and Gender Identity

The government censored all materials relating to lesbian, gay, bisexual, and transgender (LGBT) issues. In 2008 President Ahmadi-Nejad called homosexual activity an "unlikable and foreign act" that "shakes the foundations of society."

The Special Protection Division, a volunteer unit of the judiciary, monitored and reported "moral crimes." The law prohibits and punishes homosexual conduct; sodomy between consenting adults is a capital crime. According to a December HRW report, security forces used discriminatory laws to harass, arrest, and detain individuals they suspected of being gay. In some cases security forces raided houses and monitored Internet sites for information on LGBT individuals. Those accused of sodomy often faced summary trials, and evidentiary standards were not always met. The punishment of a non-Muslim gay man or lesbian was harsher if the gay man or lesbian's partner was Muslim. Punishment for homosexual behavior between men was more severe than for such behavior between women.

The law defines transgender persons as mentally ill, encouraging them to seek medical help in the form of gender-reassignment surgery. The government provided grants of as much as 4.5 million toman (\$4,500) and loans of as much as 5.5 million toman (\$5,500) for transgender persons willing to undergo gender reassignment surgery. Human rights activists and NGOs reported that some members of the gay and bisexual community were pressured to undergo gender reassignment surgery to avoid legal and social persecutions in the country.

The size of the LGBT community was unknown, as many individuals feared identifying themselves. There were active LGBT NGOs in the country, but most activities to support the LGBT community took place outside the country.

On April 25, according to press reports, police found a 24-year-old transgender woman known as Mahsa strangled in her apartment. Mahsa had previously undergone male to female sex-change operations. Her two brothers confessed to killing her on moral grounds. Although the brothers were sentenced to prison time of eight years and three years, respectively, the sentences included suspended jail time, which reduced their actual sentence in prison to three years and one year, respectively.

In July according to HRW, a Tabriz court issued an execution order for Ebrahim Hamidi, who was originally charged at age 16 with raping a minor. After the victim retracted his accusation, the court acquitted three other defendants but convicted Hamidi of sodomy based on *elm-e ghazi*. According to his lawyer, Mohammed Mostafaei, officials tortured Hamidi into signing his confession. HRW reported four other men in the country were in danger of execution for sodomy.

According to the HRW report, family members threatened and abused many young gay men, who also faced harassment from religious scholars, schools, and community elders. Some LGBT persons were expelled from university for allegations of homosexual activities. The HRW report also alleged that Basij forces attempted to entrap for arrest persons engaged in homosexual behavior.

On July 10, officers raided a private party in Shirza and arrested 17 gay men. According to a local NGO the charges against the men were eventually dropped.

Other Societal Violence or Discrimination

Persons with HIV/AIDS reportedly faced discrimination in schools and workplaces. The government supported programs for HIV/AIDS awareness and generally did not interfere with private HIV/AIDS-related NGOs. Government hospitals diagnosed and treated AIDS patients free of charge.

Section 7 Worker Rights

a. The Right of Association

The law provides workers the right to establish unions; in practice the government did not permit independent unions and severely restricted workers' attempts to organize. Workers in transportation, education, and other sectors were systematically suppressed. A national organization known as Workers' House was the sole authorized national labor organization. It served primarily as a conduit for government control over workers. The leadership of Workers' House coordinated activities with Islamic labor councils in industrial, agricultural, and service organizations comprising more than 35 employees. According to the ICHRI, these councils, which consisted of representatives of workers and a representative of management, were essentially management-run unions that undermined workers' efforts to maintain independent unions, but they nonetheless frequently blocked layoffs and dismissals in support of workers' demands. During the year the government pressured workers to join the government-sponsored councils.

The 1990 labor code stipulates that workers may establish an Islamic labor council or a guild at any workplace or that workers may appoint an official representative. The law strongly favors Islamic labor councils; no other form of representation is allowed in a workplace where such a council has been established. Although Workers' House oversees Islamic labor councils, the Interior Ministry, the Ministry of Labor, and the Islamic Information Organization draft councils' constitutions,

operational rules, and election procedures. There is no representative workers' organization for workers who are noncitizens.

Restrictions on freedom of association for workers continued during the year as the government and the judiciary imprisoned and aimed to silence labor activists. Because of the severe crackdown on labor unions from the previous year, many workers groups cancelled annual May Day protests, including activities focused on the banned teachers union.

On April 16, leaders of the country's teachers associations met in the city of Yazd to formulate a statement. Officials from the local intelligence office telephoned to threaten them and warn them to leave. The statement by the leaders of the Coordinating Council of Teacher's Trade Association called for hunger strikes after National Teachers Day on May 2.

On April 22, intelligence officials summoned Tofigh Mortezapour and Hasan Kharatian, both from the Teachers' Trade Association in Tabriz. On April 26, authorities searched Mortezapour's house and confiscated personal items, including his computer and papers. On April 27, authorities interrogated both men.

On April 24, intelligence officials summoned three members of the Teachers' Trade Association in Hamedan--Ali Najafi, Asghar Mohammad Khani, and Jalal Naderi--to the local intelligence office. The ICHRI reports that authorities detained Najafi for a day and night. The three faced interrogations again on April 26.

Also on April 24, the Tehran Investigation Office of the Intelligence Ministry summoned Ali Akbar Baghani, the secretary general of the Teacher's Trade Association, and Mohammad Beheshti Langeroudi, the spokesperson for the association. On April 29, intelligence agents searched their houses and detained the two men without informing them of the charges. The events prefaced worker and teacher strikes planned for May 1 and 2. Both men were released in July after 63 days in prison.

In a related incident on April 28, the Human Rights Activists News Agency reported that security forces entered the house of Alireza Hashemi, head of the Teachers' Organization, and took him to an unknown location after confiscating his computer and a number of personal belongings. In June 2009 during a general crackdown on dissidents, authorities arrested and detained him for 25 days. At year's end he remained in prison.

On May 1, National Workers Day, union and student protesters clashed in Tehran, and dozens were reported injured. There were also reports of demonstrations in other cities including Tabriz, Shiraz, Kermanshah, Qazvin, and Esfahan. International media reported that more than 16 persons were injured. Also on May 1, authorities reportedly briefly detained Mahmoud Salehi, former head of the Saqqez Bakery Workers' Union who completed a prison term in 2008, and asked him not to participate in Workers' Day activities.

On June 12, authorities arrested Reza Shahabi, a leader of the bus syndicate, and kept him in solitary confinement for 40 days. The Tehran bus company fired Shahabi four years prior for alleged union activity. The ICHRI reported that the Revolutionary Court had not at year's end charged Shahabi with any crime. In December Shahabi went on a hunger strike to protest that he had not been released after payment of his bail of one million toman (\$100,000). At year's end he remained in prison.

On August 3, a court sentenced Rasoul Bodaghi, a member of the board of directors of the teachers' association, to six years in prison and prohibited him from union activity for five years on charges of "propaganda against the system" and "assembly and attempt to disrupt the national security." Authorities arrested the veteran teacher in September 2009. Gohardasht Prison guards reportedly severely beat him on May 28.

On November 2, intelligence officials in Karaj briefly detained and reportedly assaulted bus syndicate leaders Saeed Torabian and Gholamreza Gholamhosseini. Two days later, intelligence officials arrested the two as they were posting a message on the Internet about the November 2 incident. On November 3, authorities reportedly released Torabian, but Gholamhosseini remained in prison at year's end, along with other syndicate leaders arrested in November, including Morteza Komsari and Ali Akbar Nazari. Authorities also detained Torabian from June 9 to July 20, charging him with acting against national security and speaking against the regime.

There was no update on the case of journalist and union organizer Sajad Khaksari, whose final charge was awaiting treatment by a public court in Tehran in December 2009. Khaksari is the son of Mohammad Khaksari and Soraya Darabi, both leaders of the Iran Teachers' Trade Association.

On January 4, security agents arrested the then public relations officer of the Haft Tapeh Sugar Cane Company's trade union, Reza Rakhshan, and detained him until

his January 20 release on bail of 15 billion toman (\$15 million). On December 1, the Avhaz appeals court reversed a lower court's acquittal of Rakhshan, by that time the new president of the union, and sentenced him to six months in prison for "propagation of lies." Rakhshan had written an article commemorating the second anniversary of the union and describing his firing earlier in the year for union activities. On April 14, authorities released then union president Ali Nejati on bail. Union leaders Mohammed Heydari Mehr, Feridoun Nikoufard, Jalil Ahmadi, and Ghorban Alipour were all released after serving sentences of between four and six months.

In August 2009 security officers closed the offices of the Association of Iranian Journalists immediately before a union general meeting and President Ahmadi-Nejad's swearing-in. At year's end the association was inactive, and many of its members remained in prison.

There was no further information about Ebrahim Madadi, who remained in prison at year's end on charges from 2007.

On May 28, prison authorities transferred bus-driver syndicate leader Mansour Ossanloo from Evin Prison to solitary confinement in an IRGC ward at Gohardasht Prison. The ICHRI reported that intelligence ministry interrogators reportedly subjected Ossanloo to harsh interrogations and mental torture. AI noted that authorities denied Ossanloo medical care. In August Branch 1 of the Revolutionary Court reportedly sentenced Ossanloo to an additional year in prison for "propaganda against the regime." Ossanloo had no access to a lawyer during his sentencing, and authorities failed to notify his lawyers that he was going to court. Ossanloo's original charges dated from 2007.

The law prohibits public sector strikes, and the government considered unlawful any strike deemed contrary to government economic and labor policies, including strikes in the private sector, but strikes did occur. According to international media reports, security forces continued to respond with arbitrary arrests and violence to workers' attempts to conduct labor strikes.

b. The Right to Organize and Bargain Collectively

Workers did not have the right to organize independently or to negotiate collective bargaining agreements freely. According to the International Trade Union Confederation, labor legislation did not apply in export processing zones.

c. Prohibition of Forced or Compulsory Labor

The labor code prohibits all forms of forced or compulsory labor, including by children; however, there were reports that such practices occurred. See also the Department of State's annual *Trafficking in Persons Report* at www.state.gov/g/tip.

d. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits employment of minors younger than 15 and places restrictions on employment of minors younger than 18, such as prohibitions on hard labor or night work; however, it permits children to work in agriculture, domestic service, and some small businesses. The government did not adequately monitor or enforce laws pertaining to child labor, and child labor was a serious problem.

According to government sources, three million children were prevented from obtaining education because their families forced them to work. Unofficial sources claimed the figure was closer to five million, and credible reports stated that approximately 14 percent of children in the country were forced to work in dangerous conditions. There were reportedly significant numbers of children--primarily Afghan, but also Iranian--working as street vendors in major urban areas. Traffickers also exploited children for forced commercial sexual exploitation and involuntary servitude as beggars and laborers. Children also worked as mechanic apprentices or in clay/brickmaking operations. Also see the Department of State's annual *Trafficking in Persons Report* at www.state.gov/g/tip.

e. Acceptable Conditions of Work

On March 16, according to international media, the Supreme Labor Council announced an annual minimum wage of 303,048 toman (\$303); labor rights activists claimed that amount was insufficient to feed a family of four in Tehran.

The labor law does not cover an estimated 700,000 legal workers, as it applies in full only to workplaces with 10 or more workers. Workplaces with fewer than five workers or in export processing zones are exempt from all labor laws. Afghan workers, especially those working illegally, often were paid less than the minimum wage.

The law establishes a maximum six-day, 48-hour workweek with a weekly rest day (normally Friday), at least 12 days of paid annual leave, and several paid public holidays. Women have the right to maternity leave.

The law establishes a safety council chaired by the labor minister or his representative to protect workplace safety and health. Labor organizations outside the country have alleged that hazardous work environments were common and resulted in thousands of worker deaths annually. The quality of safety regulation enforcement was unknown, and it was unknown whether workers could remove themselves from hazardous situations without risking the loss of employment.

* The United States does not have an embassy in Iran. This report draws heavily on non-U.S. government sources.